When Pollution Rises, Reporting Falls: Coal Mining and Self-Monitoring under the Safe Drinking Water Act

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Abstract

One regulatory model requires firms to self-report their own compliance, placing the cost of monitoring on the firm and creating an incentive to shirk reporting to save on self-reporting costs or to conceal a regulatory violation. That incentive grows as monitoring costs rise, so if costs increase in states of regulatory concern, firms under-report when reporting is most valuable to the regulator. I document this perverse incentive among drinking water utilities in the United States exposed to water contamination from coal mining. To measure utility exposure to mining, I adapt an instrument for coal production based on the reallocation of coal supply across high- and low-sulfur mines following the Acid Rain Program (ARP). Utilities with more upstream mining show higher arsenic, selenium, and barium concentrations, yet no increase in recorded contaminant limit violations. Instead, self-reporting of water quality falls by three to four percentage points, even as reporting requirements increase with contamination. Regulators conduct inspection visits to substitute for utilities' under-reporting: an additional upstream mine raises the likelihood of a regulator visit by 2 percentage points, yet those inspections do not uncover contaminant limit violations. I cannot detect any increase in sanctions, suggesting both that sanctions are not deterring under-reporting and that there are no concealed contaminant exceedances to uncover. A model of self-reporting predicts that regulators could increase self-reporting by increasing penalties for under-reporting.

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Keywords: self-reporting; monitoring and enforcement; environmental regulation; drinking water quality; Safe Drinking Water Act; coal mining; water pollution; Acid Rain Program.

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1 Introduction

Between 9 and 34 million Americans each year are served by a drinking water utility that violated a health-based drinking water standard (Allaire, Wu, and Lall 2018). Like other environmental regulations in the United States, the Safe Drinking Water Act ("SDWA") delegates compliance monitoring to the regulated firm: the utility samples its own water, pays for the analysis, and self-reports the results to the regulator. Self-reporting makes regulation more affordable to administer because it shifts the cost of gathering information from a resource-constrained regulator onto the tens of thousands of utilities being regulated. As with other environmental regulations that involve self-reported compliance, utilities have an incentive to under-report in order to reduce the cost of self-reporting or to conceal a contaminant violation. This leads to a perverse incentive to under-report when contamination increases since, as water quality deteriorates, monitoring requirements rise and the likelihood of a contaminant exceedance increases. In this state, a utility's incentives to under-report increase when the regulator's need for monitoring increases. Whether those incentives reduce self-reporting is an empirical question that has implications for maintaining and assessing American drinking water quality.

How do firms and regulators respond to an increase in contamination under a contamination control regulation that is monitored through self-reported compliance? Compliance monitoring is the first step in enforcing regulation, so first-order questions are what happens to self-monitoring when contamination rises and what regulators do in response. I answer these in the context of US drinking water utilities exposed to an exogenous increase in water contamination from upstream coal mining between 1985 and 2005. I find that contamination increases under-reporting primarily by raising the cost of self-reporting rather than by creating an incentive to conceal contaminant violations. The separation between the source of contamination and the regulated firm in this setting helps identify the effect of contamination. In most industries, a firm's contamination cannot be separated from its production choices, since a firm can contaminate less by producing less (Bennear 2005). By contrast, utilities are contaminated by coal mining through an upstream pollution externality. Coal mining releases inorganic chemicals ("IOCs") such as arsenic and nitrates into surface and groundwater, and where mining occurs is largely determined by the geology of coal seams and national energy policy rather than by the decisions of downstream drinking water utilities.

The literature has modeled under-reporting as concealment where a firm withholds information to hide a violation. In work on water utilities, under-reporting is attributed to hiding a contaminant exceedance (Naylor 2024; Andarge et al. 2025; Wallsten and

Kosec 2008), with Bennear, Jessoe, and Olmstead (2009) a rare example of over-sampling to avoid a violation, and the same motive is assigned to oil and gas firms (Lee 2020). A closely related literature finds that regulated entities exploit gaps in monitoring coverage rather than misstating measurements. Ambient air quality deteriorates on days when monitors are not scheduled to operate (Zou 2021), firms shut pollution monitors down strategically during times of increased output (Mu, Rubin, and Zou 2026), and small cement plants exempt from air quality reporting go unmonitored despite causing large health damages (Zirogiannis et al. 2023). Work on how to induce self-reporting asks what combination of audit frequency and penalty makes reporting incentive-compatible against the payoff from concealing a violation (Innes 1999; Foster and Gutierrez 2013; Anton, Deltas, and Khanna 2004), with Malik (1993) finding that infrequent visits paired with high penalties induce better self-reporting. Across this literature, the cost of self-reporting to the firm is not modeled, nor is the way self-reporting costs change with contamination. I relax these assumptions in this paper. Monitoring requirements under the SDWA tighten as water quality deteriorates, so the price of complying with self-reporting rules rises with contamination, and a utility can under-report solely to avoid self-reporting costs. The cost-of-reporting channel has been identified in tax compliance, where filing costs deter reporting independently of liability (Tazhitdinova 2018), but not in environmental compliance monitoring.

Under-reporting undermines several effective enforcement strategies based on violation history that the enforcement literature has identified. Enforcement of environmental regulation improves compliance when larger violations draw harsher sanctions (Shimshack 2014; Harford 1987) and when regulators escalate against repeat offenders (Blundell, Gowrisankaran, and Langer 2020; Blundell 2020). Duflo et al. (2018) find that regulators use inspections selectively to target the worst polluters, raising future abatement. These approaches to enforcement need recorded violations, but when contamination rises and utilities under-report, the regulator lacks the information to direct enforcement. Moreover, I show evidence that some of these enforcement strategies, in particular, inspections without penalties, are insufficient to induce compliance. Under-reporting presents the risk that measurements of water quality are unreliable. US drinking water quality has improved substantially since the SDWA (Keiser et al. 2026), with notable exceptions such as the crisis in Flint, Michigan (Christensen, Keiser, and Lade 2023), and significant remaining health costs from contaminated water (Hill and Ma 2017; Keiser and Shapiro 2019; DiSalvo and Hill 2024; Marcus 2025). However, much of this evidence comes from utility self-reports and is therefore unable to measure water quality that was never reported. A related literature argues that US water quality regulation has

improved to the point where the remaining gains from abating point-source pollution are small, since eliminating point-source emissions entirely would improve only 10 percent of US rivers and streams in EPA quality ladder rankings (Bingham et al. 2000), though the benefits of surface water regulation may be undervalued due to the difficulty of measuring contamination — a problem instrumental variables can address (Keiser 2019). My findings suggest that even small amounts of point-source pollution can lead to large negative impacts on drinking water quality. On the impact of coal mining on water quality, the geochemistry linking coal mining to water contamination is well established (Skousen, Ziemkiewicz, and McDonald 2019; Akcil and Koldas 2006), and economic work has documented coal mining's effects on air quality, greenhouse gas emissions, and health (Muller, Mendelsohn, and Nordhaus 2011; Parfitt 2024); however, this work has not established whether mining contamination reaches treated water at drinking water utilities and, through them, households. The question is not only historical: US federal energy policy has expanded mining access on federal lands and intervened to prevent planned coal-fired power plant retirements (U.S. President (Trump) 2025a, 2025b, 2025c; Daly 2025).

This paper makes three contributions. First, this is the first study to identify the cost of self-reporting, rather than the concealment of a contaminant exceedance, as a cause of under-reporting by drinking water utilities. Utilities face a mandated increase in testing frequency when nitrate levels cross half of the contaminant limit. Under-reporting jumps immediately after that threshold is crossed, even when readings are still below the limit and there is no exceedance to conceal. Second, this is the first study to identify the effect of contamination itself on firm self-reporting and regulator enforcement. Enforcement does not intensify at the utilities that reduce self-reporting when contamination rises; instead, regulators replace the utilities' self-reporting obligations with their own sanitary visits, absorbing the monitoring cost that self-reporting was designed to shift onto the regulated. Despite regulators increasing the frequency of visits to under-reporting utilities, they do not discover concealed contaminant exceedances. This provides additional evidence that under-reporting is driven by self-reporting costs. Third, I provide the first causal estimates of coal mining's effect on drinking water quality at treated utilities in the United States, identifying that coal mining pollution contaminates piped household water. Methodologically, I adapt the instrument for coal production from Douglas and Wiggins (2015), who use the change in demand preferences for coal based on its sulfur content driven by the Acid Rain Program to predict production at coal mines, and apply it for the first time to instrument a drinking water utility's exposure to coal mining through its water intakes. The results are applicable beyond drinking water. Self-reported com-

pliance underpins regulations as diverse as the income tax and public company finances, and wherever the cost of reporting rises with an outcome being reported, monitoring weakens precisely when it matters most.

The rest of the paper proceeds as follows. Section 2 describes the SDWA, the self-reporting and enforcement institutions it creates, and the Acid Rain Program. Section 3 sets out the model of negligence and self-reporting and derives its three propositions. Section 4 describes the data. Section 5 estimates the effect of coal mining on measured contaminant concentrations. Section 6 constructs the instrument and assesses its validity. Sections 7 and 8 report the effects of coal mining on utility self-reporting and contaminant limit exceedances, and on regulator visits and enforcement. Section 10 discusses the mechanisms and Section 11 concludes.

2 Institutional background

Empirically identifying the impact of contamination on firm behavior requires separating the firm's choices over output and contamination. Separating a firm's output and contamination in most industries is challenging since firms can reduce contamination by reducing output. For example, in the US, the Toxics Release Inventory requires firms to report emissions, handling, and use of chemicals above a reportable quantity. Firms can avoid the reporting requirement by emitting less or producing less, and they respond strategically to such reporting thresholds (Bennear 2005). Water contamination from coal mining is an external process for drinking water utilities since they do not directly control coal production, making it an ideal setting to study the effect of contamination on self-reporting.

2.1 Drinking water utilities, regulators, and the Safe Drinking Water Act

I focus on drinking water utilities downstream of coal mines between 1985 and 2005. In particular, I focus on a class of drinking water utilities regulated by the SDWA and known legally as community water systems. These systems serve at least 25 year-round residents or have at least 15 service connections. The SDWA is a federal regulation that requires all community water systems to remove contaminants and self-report compliance to state regulators. Regulators issue a maximum contaminant level ("MCL") violation to a utility that self-reports a contaminant above a contaminant-specific limit. MCL violations are serious threats to public health, require timely rectification, and often trigger enforcement

actions. However, regulators cannot issue an MCL violation until a utility self-reports its water quality, creating an opportunity for utilities to conceal an MCL violation by not reporting. Utilities that fail to report or under-report receive a monitoring and reporting ("MR") violation. Utilities have an additional incentive to under-report to avoid self-reporting costs, which are expensive in and of themselves and require hiring technical and administrative staff and paying laboratories.

A survey of Indiana drinking water utility managers in 1980 found that the reporting requirements of the SDWA had the greatest impact on their systems (Oleckno 1982). Utilities found self-reporting requirements difficult to meet due to the technical burden of properly collecting the samples, storing them, and then shipping them to a lab. They also found the administrative burden of conducting the correct tests on time to be burdensome. In 1992, utilities were required to test for 82 contaminants. The baseline schedule varied by contaminant and system type. For example, groundwater utilities were required to test for nitrates once a year, and utilities serving fewer than 1,000 people had to test for coliforms at least once a month.

Self-reporting requirements, and therefore self-reporting costs, increase with contamination. Regulators may require utilities with contaminated water supplies, or those at risk of contamination, to conduct more frequent tests. For example, utilities that detected nitrates above 50% of the MCL (5 mg/L during the period of this study) were required to test quarterly. Contamination increases a utility's likelihood of exceeding the MCL, increasing the incentive to under-report in order to conceal an MCL violation.

States and tribes conduct enforcement actions against utilities that violate MCLs or receive MR violations. The SDWA gives states wide discretionary powers to tailor compliance and enforcement plans to each utility and violation. The intention is for the violation to be resolved quickly enough to reduce the health impacts of contamination. MCL violations are treated seriously and receive stricter enforcement than MR violations. However, an intentional MR violation concealing an MCL violation is punished more harshly than a regular MR violation. Enforcement is frequently remedial rather than punitive, addressing the cause of the violation. Enforcement can be informal (letters, notices of violation, compliance plans) or formal (court-mandated consent decrees, legal prosecution, fines). Enforcement without financial penalties is still costly to utilities. Public notifications for violations have large reputation costs that deter violations (Bennear and Olmstead 2008). Consent decrees can require installing expensive treatment infrastructure or hiring technical personnel. The replacement of an existing arsenic filtration system at a utility with baseline arsenic levels of 0.029 mg/L, serving 250 people in Pennsylvania in 2011, cost $191,970, including $136,744 for equipment, $21,726 for site engineering, and $33,500 for

installation. In addition, it cost an average of $60 a day in chemical, electricity, and labor costs (U.S. Environmental Protection Agency 2011).

Regulators also enforce utility compliance through on-site visits, which the EPA categorizes into five groups based on the reason for the visit: sanitary, technical assistance, enforcement, sample collection, and inspection visits (U.S. Environmental Protection Agency 2026b). The most extensively documented of these is the sanitary survey, an on-site evaluation, conducted by the state or tribal agency, of eight components of a utility's system: its water source, treatment process, distribution system, finished-water storage, pumps and pumping controls, monitoring and reporting practices, system management and operation, and operator compliance with certification requirements (U.S. Environmental Protection Agency 2026a). Utilities receive a sanitary survey at least once every three years; the survey also gives the primacy agency an opportunity to educate operators on proper monitoring and sampling procedures and to provide technical assistance (U.S. Environmental Protection Agency 2026a). Technical assistance visits involve engineering plan review and operations-and-maintenance guidance, and sample collection visits involve the regulator collecting the water sample.

Enforcement visits accompany a formal enforcement action, an investigation of a complaint or violation, or an emergency response, while inspection visits comprise site inspections, regularly scheduled inspections, and informal inspections outside the sanitary-survey cycle (U.S. Environmental Protection Agency 2026b). A 2024 EPA fact sheet on utility inspections describes the general on-site inspection process: inspectors open with a conference, walk through the facility to examine the source, treatment, distribution, and storage components and the condition of equipment, collect water samples, and review the utility's monitoring plans, sampling logs, operational manuals, and distribution system maps (U.S. Environmental Protection Agency 2024). Inspections may also follow up on a prior inspection, sanitary survey, enforcement action, or citizen complaint; EPA typically issues an inspection report within 60 to 90 days, and further enforcement action may follow if violations are identified (U.S. Environmental Protection Agency 2024).

I focus on the SDWA regulation of arsenic, nitrates, barium, selenium, and general IOCs since they can be contaminant byproducts of coal mining and their MCLs did not change between 1985 and 2005.[1] Nitrate and arsenic self-reporting requirements changed between 1985 and 2005; however, they changed nationally. Year fixed effects in empirical models are used to address the concern that changes in MR violations would be the result of changing self-reporting requirements. The SDWA IOC contaminant rule contains all

1. The list of regulated contaminants has been added to over time: in 1985, there were 23 regulated contaminants, and by 2005, there were 93.

regulated IOCs during this period, some of which are subject to changing MCLs and some of which may be contaminant byproducts of coal mining.

Arsenic, nitrates, barium, and selenium are commonly produced during coal mining through acid mine drainage ("AMD") (Liang et al. 2017; Boente, Baragaño, and Gallego 2020; Rouhani, Skousen, and Tack 2023). AMD occurs when rocks containing sulfides are exposed to air and water, beginning the process of oxidation and decomposition (Ceto and Mahmud 2000). The oxidized minerals form sulfuric acid, which dissolves metal ions and sulfates that can then be carried into surface water or groundwater (Akcil and Koldas 2006; Skousen, Ziemkiewicz, and McDonald 2019). Mines can reduce AMD by covering excavated material with water in tailings ponds. Coal mining can also generate pollution through coal wash slurry. Coal washing processes coal with water and chemicals to remove impurities and improve combustibility. The slurry waste is often mixed with water and stored in retaining ponds or abandoned mine shafts. Dissolved pollutants enter groundwater and surface water by seeping through porous rocks or through retaining pond failures (Sealey 2000).

2.2 The Acid Rain Program (ARP) and utility exposure to coal mining

I use the ARP to obtain a causally valid estimate of the response of utilities and regulators to coal mining. The ARP was signed on November 15, 1990, as an amendment to the Clean Air Act, with the intention of reducing acid rain by limiting emissions of acid rain precursors from coal-fired power plants: sulfur dioxide (SO2) and nitrogen oxides (NOx). The regulation capped total national SO2 and NOx emissions. Power plants were given emission allowances and were fined if their emissions exceeded them. Although compliance could be achieved through allowance trading, SO2 scrubbers, and NOx scrubbers, fuel switching to low-sulfur coal was the primary abatement response. The ARP achieved 100 percent compliance (Lattanzio 2022).

Emissions were capped in two phases. In Phase I, the EPA issued emission permits and allowances to 110 highly polluting, mostly coal-fired electricity-generating facilities. Facilities targeted under Phase I were required to achieve compliance with SO2 emission reductions by 1995. Phase II included smaller power-generating units that used oil, coal, and gas. The deadline for compliance with Phase II was January 1, 2000. I focus on the Phase I deadline because it targeted the largest coal-fired power plants, which were the largest customers for coal since the electric power industry accounted for 90 percent of coal demand in 2000 (Freme 2000). The ARP increased the demand for low-sulfur coal and reduced the demand for high-sulfur coal (U.S. Environmental Protection Agency

2001; Douglas and Wiggins 2015). Mines producing high-sulfur coal have a limited ability to post-process the coal to remove sulfur since part of the sulfur is integral to the chemical structure of the coal and cannot be removed (Wheelock and Markuszewski 1984).

3 Theoretical model

3.1 Setup

I build a theoretical model to formalize a utility's decisions to comply with water contamination regulation under rising contamination. Utilities are required to meet contamination requirements and self-report compliance. I follow Mookherjee and Png (1994) and assume that utilities find contamination compliance costly. Compliance cost is determined by a utility's ability, such as the skills of its managerial and technical staff, and the costs of water treatment, including the cost of filtration equipment and sterilization chemicals. A utility's compliance cost, θ, is a random variable drawn from $F(\cdot\,; m)$, a strictly increasing and continuously differentiable cumulative distribution function with support $(0, \bar{\theta})$, density $f(\cdot\,; m)$, and contamination m. A larger θ represents higher compliance costs. Increasing m weakly lowers the probability that a utility's compliance cost falls at or below any given level, so that $\partial F(\theta; m)/\partial m \leq 0$. Utilities know their draw of θ, but regulators only know the distribution of θ.

Utilities receive a benefit from neglecting their contamination control requirements. The utility chooses a negligence level $a \in [0, \bar{a}]$, which measures how much it avoids the requirements of drinking water quality regulations, ranging from full compliance, $a = 0$, to avoiding every requirement, $a = \bar{a}$. Regulators do not directly observe a utility's choice of a. A utility receives a benefit $\theta b(a)$ from having compliance costs θ and choosing a negligence level a, where $b'(a) > 0$ and $b''(a) < 0$. A utility's benefits from negligent contamination control are the savings on wages and chemicals. The opportunity cost to the utility of choosing a negligence level a relative to maximum negligence $\bar{a}$ is $\theta[b(\bar{a}) - b(a)]$. The financial benefit of a certain level of negligence to a profit-maximizing, privately owned utility is obvious. Publicly owned utilities also benefit from cost savings that allow them to forgo rate increases or tax collection, which may be unpopular with residents.

Utilities are legally required to self-report their water quality each year but have the choice to under-report. Given negligence a, a year of self-reporting would reveal a contaminant exceedance with probability $q(a)$, with $q(0) = 0$, $q' > 0$, and $q'' \geq 0$. I modify the penalty structure from Kaplow and Shavell (1994) by assuming that self-reporting is costly. A utility's annual self-reporting cost $c \sim G(\cdot\,; m)$ is drawn from a strictly increasing

and continuously differentiable cumulative distribution function with density $g(\cdot\,; m)$ and support $[0, \bar{c}]$, where the support itself does not vary with m. Regulators require utilities to increase sampling as contamination increases, so the distribution $G(\cdot\,; m)$ depends on upstream contamination m with $\partial G(c; m)/\partial m \leq 0$ for every c. Raising m weakly lowers the probability that a utility's self-reporting cost is at or below any given level.

Regulators perfectly observe under-reporting. Unlike Mookherjee and Png (1994), I assume regulators do not observe contaminant exceedances unless utilities self-report water quality or the regulator conducts an inspection. Regulators use penalties and investigations for under-reporting and contaminant exceedances. Utilities receive a sanction r if they self-report a contamination level above the MCL and a penalty t for under-reporting. Regulators investigate under-reporting utilities with a probability p and issue a sanction s for a discovered contaminant exceedance, where $s > r$.

I maintain two assumptions on the sanctions throughout. First, $r > ps$: the certain sanction a utility bears for disclosing a contaminant exceedance exceeds the expected sanction it bears for concealing one, which is what gives a utility a reason to conceal in the first place. Together with $s > r$ this requires the investigation probability to satisfy $p < r/s$. Second, $t \geq (r - ps)\, q(\bar{a})$, which keeps the self-reporting threshold defined below non-negative at every negligence level. Without it, $(r - ps)q(a)$ could exceed t at high negligence, and since self-reporting costs satisfy $c \geq 0$, a negative threshold would mean no utility with any cost draw self-reports.

I maintain one regularity condition on the negligence choice: b and q are such that optimal negligence is interior, $a \in (0, \bar{a})$, at every type in the support of θ and at either marginal sanction, r or ps. Interiority makes the first-order condition below both necessary and sufficient within a decision to self-report or under-report.

Each year the utility chooses either to self-report at a cost c or to not report and receive an under-reporting violation. Expected costs are the sum of expected penalties and self-reporting costs:

$$\begin{aligned} \text{self-report:} \quad & c + q(a)\, r \\ \text{under-report (MR):} \quad & t + p\,[q(a)\, s] \end{aligned}$$

The utility self-reports if and only if

$$c \leq \hat{c}(a) \equiv t - (r - ps)\, q(a). \tag{1}$$

The term $(r - ps)q(a)$ is the wedge between self-reporting a contaminant exceedance and concealing it. Even a system with no MCL violations, $q(a) = 0$, stops self-reporting once

$c > t$, that is, when self-reporting is more expensive than the sanction for skipping it, even though there is no MCL violation to conceal. The self-reporting threshold is decreasing in $q(a)$, so systems with a higher probability of exceeding the MCL reduce self-reporting at lower cost thresholds. The expected annual cost of the reporting decision, at a cost draw c, is

$$e(a; c) = \min \{ c + q(a)r, \quad t + q(a)ps \}, \tag{2}$$

which is increasing in a.

3.2 Model predictions

The model predicts that the share of utilities failing to self-report rises with contamination, and it does so through two channels, neither of which requires a utility to be hiding a contaminant exceedance.

The first is a pure cost channel. A utility self-reports when its draw of the self-reporting cost falls below the cutoff $\hat{c}(a)$ in equation (1), which compares the cost of a round of testing against the penalty for skipping it, net of what the utility saves by not revealing an exceedance. Regulators require more frequent sampling of utilities whose source water is impaired, so contamination shifts the distribution of self-reporting costs to the right while leaving each utility's cutoff where it was. More of the population lands above its own cutoff, and under-reporting rises. This channel operates even for a utility whose water quality does not approach the contaminant limit, since such a utility still stops reporting once self-reporting costs more than the penalty for not reporting, and it has no contaminant exceedance to conceal.

The second channel works through the composition of compliance costs. Contamination also raises the cost of treating water to any given standard, shifting the distribution of the compliance-cost type θ to the right. Utilities with higher compliance costs choose more negligence, and a more negligent utility faces a higher probability that a self-report would reveal an exceedance, which lowers its own reporting cutoff. Contamination therefore moves the population toward types that are already closer to not self-reporting. The comparative statics of both channels are non-negative, so the share of utilities under-reporting is non-decreasing in contamination. This is Proposition 2, and it is one of the predictions tested in the empirical work.

The model predicts that the probability of a contaminant exceedance increases when contamination increases, conditional on a utility conducting a self-reported water quality test. By assumption, contamination raises compliance costs. Compliance costs raise negligence since the benefits of negligence are scaled by the compliance cost. Finally, the

probability of a contaminant exceedance upon self-reporting increases with negligence. Contaminant exceedances will not be detected in the data if utilities do not self-report water quality.

Appendix A states and proves the three propositions: negligence is increasing in compliance costs (Proposition 1), the share of under-reporting utilities is non-decreasing in contamination (Proposition 2), and scaling every sanction by a common factor raises self-reporting (Proposition 3). Proposition 3 is the model's policy statement and is not tested here.

4 Data

I measure the behavior of utilities and regulators under a contamination self-reporting regulation when contamination increases in a panel dataset of drinking water utilities downstream of at least one active coal mine from 1985 to 2005. Utility behavior and performance are measured with annual self-reporting violations, contamination exceedance violations, and contaminant concentration measurements. Regulator action is measured through enforcement and visits to the utility. A utility's exposure to coal mining is measured by counting the active coal mines, and summing the coal produced at each mine, in the two watersheds directly upstream of the utility's water source. My results are robust to measuring coal production in different numbers of upstream watersheds. I measure the characteristics of coal within watersheds by the percentage of its weight composed of sulfur. Section 6 describes how coal's sulfur content is used to create an exogenous measurement of a utility's exposure to coal production.

4.1 Utility characteristics, regulator, and violation data

The EPA's Safe Drinking Water Information System ("SDWIS") Enforcement and Compliance History Online ("ECHO") provides data on the universe of utilities active between 1985 and 2005. This time period lacks time-varying utility characteristic data, except for data on the number of facilities operated by each utility, such as water intakes and treatment plants. I use the number of active facilities as the only time-varying utility characteristic.

SDWIS ECHO provides data on utility MR violations, MCL violations, regulator enforcement, and utility visits. SDWIS records violations accurately but not exhaustively. A survey of 1,800 utilities in 2000 found that 10 percent of MR violations and 50 percent of MCL violations were in SDWIS, but 95 percent of violations in SDWIS were accurately

reported (U.S. Environmental Protection Agency 2000).

I construct outcome variables for MR and MCL violations for a general IOC category, arsenic, and nitrates. SDWIS ECHO uniquely identifies utility violations with information on the start and end dates of the violation, the SDWA rule violated, and the contaminant. To avoid double counting violations, I exclude any IOC violations that occur at the same time and at the same utility as an arsenic or nitrate violation. I measure utility violations during a year with a binary variable equal to one if the utility experienced a violation of that type at any time during the year. I measure the number of days per year a utility was in violation as a robustness check because SDWIS ECHO often records violations as starting when utilities fail to meet regular testing schedules and then continue for a fixed period after they are issued, rather than recording the precise dates a contaminant was elevated.

Table 1 presents summary statistics for two measurements of annual utility violations: whether there is any violation in a year and the number of days violated in a year. The summary statistics are calculated from utility-year cells. MCL violations rarely occur; a total of 49 MCL violations occur over the entire panel. MR violations occur roughly an order of magnitude more frequently than MCL violations; depending on the contaminant, between 402 and 612 MR violations occur during the panel. On average, utilities spend ten to fourteen days of the year in an MR violation; however, the distribution is highly bimodal since, when an MR violation occurs, it tends to last the entire year. The 90th percentile of the days in a year experiencing an MR violation is 0, and the 99th percentile is 365. The rarity of MCL violations results in a 99th percentile of zero days.

I measure regulator enforcement with a binary variable equal to one for every year a utility experienced enforcement. SDWIS ECHO enforcement records include the date enforcement began and ended, and whether it was formal or informal. The "Whole panel" columns of Panel A of Table 2 summarize the share and number of cells in the sample where a utility received an enforcement action. Any enforcement occurs 20.8% of the time; most of that enforcement is informal, which occurs 18.2% of the time compared to 3% of the time for formal enforcement. A utility can experience both types of enforcement simultaneously, so "any enforcement" is not the sum of informal and formal enforcement. Enforcement is more likely to occur during a violation; conditional on an active violation, the rate of enforcement is 2 to 3.6 times higher than the unconditional rate. The "During MR year" and "During MCL year" columns of Panel A restrict the sample to utility-year observations where an MR or MCL violation of any type occurs. The likelihood of any enforcement increases from 20.8% in the unrestricted sample to 70.7% and 67.3% for the samples restricted to utility years with an MR and MCL violation, respectively.

I measure regulator visits to utilities with a binary variable, which is equal to one during a year when a utility received a regulator visit and zero otherwise. SDWIS ECHO records the date of the visit and reasons for visits, including sanitary survey, technical assistance, enforcement, sample collection, and inspections. The "Whole panel" columns of Panel B of Table 2 summarize the share and number of cells in the utility-year sample where a utility received a visit from the regulator. Sanitary survey visits are the most common type of regulatory visit at 13.6% compared to the second most common, inspection visits at 3.4%. Technical assistance, enforcement, and inspection visits are generally more likely to occur during years when utilities receive an MR violation, at roughly twice the unconditional rate. Sample collection visits are less likely to occur during years with an MR violation compared to other years. This is counterintuitive since MR violations occur precisely when utilities do not self-report their water quality, and sampling information would reveal contamination levels. Sanitary survey visits occur at a similar rate, conditional on an MR violation, and at all times. This suggests that regulators conduct more activities than just sampling water quality in response to utility under-reporting. Regulators rarely use visits to respond to MCL violations. Visits rarely coincide with MCL violations; no more than five visits of any single type occurred during an MCL violation. I cannot draw a definitive conclusion given the infrequency of MCL violations.

4.2 Utility contaminant measurement data

I measure utility contaminant concentrations of arsenic, nitrates, barium, and selenium with data from the second Six-Year Review ("SYR2", sample years 1998–2005). Although this data only covers a subset of utilities and years, it allows me to test whether coal mining raises water contamination at downstream utilities.

Beginning in 1991, the EPA conducted reviews of all National Primary Drinking Water Regulations every six years to determine whether the rules needed revisions. The SYR2 was the second round of the six-year review covering 1998 to 2005 and is the earliest six-year review round to be made publicly available. The SYR2 data contained contaminant data for 89 percent of the total population served by a drinking water system but excluded Pennsylvania, Mississippi, Kansas, and Louisiana because those states failed to submit records.

From the raw SYR2, I retain community water system utilities and drop transient and non-transient non-community water systems. This removes roughly 23 percent of raw monitoring records.

The data contains contaminant level observations, whether the contaminant was de-

tectable, and the value of the detection. Non-detections vary based on lab equipment sensitivity. To avoid a non-detect being interpreted as a zero contaminant concentration, I clean the SYR2 data following the procedure of Ravalli et al. (2022). For each contaminant, I compute the national share of records above the method detection limit ("MDL"), the minimum concentration at which a laboratory can reliably detect the contaminant in a sample, and I retain only contaminants detected in more than 10 percent of records. I replace the observations below the MDL of any contaminant with the MDL/$\sqrt{2}$; this prevents records from being dropped or mistakenly reported as zero without meaningfully inflating contaminant levels. Records reporting a concentration greater than 100 times the contaminant's MCL are dropped as data-entry errors. Among the IOCs that can be produced during coal mining, this keeps arsenic, nitrate, barium, and selenium. All mass-concentration readings are converted to mg/L.

After cleaning, sample-level records are collapsed to a utility-by-contaminant-by-year panel. The annual concentration of a particular contaminant is the mean of that year's samples at a particular utility.

Panel A of Table 3 summarizes the contaminants included in my panel. The maximum reading of every contaminant is below its MCL. The maximum arsenic reading of 0.0110 mg/L would exceed the stricter arsenic MCL of 0.010 mg/L, which took effect in 2006, but would not exceed the pre-2006 MCL of 0.05 mg/L. The fact that mean concentrations do not exceed the MCL is consistent with the low rates of MCL violations at utilities. Conditional on testing, the water contaminants appear to be within the regulatory limits. These summary statistics do not provide information on the contaminant concentrations that would be measured when a test was required by regulation but was not conducted by the utility. This data does not confirm that water contamination never exceeded the MCL. Most MR violations were issued for failure to test water quality. The SYR2 necessarily reflects the results from water quality tests and does not account for tests not undertaken that were subsequently punished with an MR violation.

SYR2 does not contain all test results submitted to regulators, but it is more likely to contain the test results of utilities that, at some point during my sample, fail to self-report their water quality and receive an MR violation. These results are more likely to reveal the contamination at the most negligent utilities, since the SYR2 represents an oversampling of more negligent utilities that are more likely to have below average water quality. Utilities that appear in the SYR2 data are slightly more likely to receive an MR violation than those utilities that never appear in the data. Table 4 reports a two-sample t-test to compare the shares of utilities that appear in the SYR2 and have any SDWA violation to the share of utilities that never appear in the SYR2 data and have any SDWA

violation. Utilities that appear in the SYR2 data are 7.2 percentage points more likely to experience any type of MR violation than utilities that never appear in the SYR2 data. The difference is significant at the 10% level. The lack of SYR2 observations for some utilities does not mean the utility was not self-reporting since utilities can be compliant with MR rules and not have any SYR2 observations. The utilities that are slightly more likely to self-report data are also slightly less likely to have contaminant concentration observations in SYR2.

4.3 River and stream connectivity data

Drinking water utilities are exposed to water pollution from coal mining when their source water is downstream of coal mines. The exposure is strongest when a utility draws from surface water. Groundwater sources downstream of coal mining are also exposed to upstream pollution since groundwater is recharged by water flowing from above. Groundwater sources are less exposed to contamination than surface water since the contaminated water flows through rock and substrate before recharging groundwater. I identify which utilities in the SDWIS ECHO national dataset source water from a watershed that is downstream of coal mining using the NHDplus hydrological connectivity dataset. The NHDplus hydrological dataset identifies the boundaries and connectivity of watersheds across the US. I combine it with an EPA dataset on the watershed-level location of utility water intakes.

The NHDplus assigns watersheds a unique 2- to 12-digit code known as a hydrologic unit code (HUC). The number of digits corresponds to the size of the area covered by the watershed, with the geographical area decreasing with the number of digits; for example, the lower 48 US states are divided into 18 HUC02s and over 87,000 HUC12s (see Figure 1). HUC12s in my sample are 11 km across on average. I use HUC12 watersheds to identify utility water intake locations. HUC12 watersheds are the smallest mapped watersheds available for the entire continental US and are small enough that coal mining activities may impact the water in the HUC12 directly downstream. To ensure that a utility intake is downstream of a coal mine, I exclude those utilities with an intake located in the same HUC12 as a coal mine; a utility water intake at a HUC12's inflow may not be affected by mining at the same HUC12's outflow. I limit my sample to utilities with at least one water intake in a HUC12 at most two directly connected watersheds downstream from a HUC12 with a coal mine between 1985 and 2005.

4.4 Coal mine and coal sulfur data

My IV relies on predicting coal production from the sulfur content of coal and whether the time period is before or after the 1995 deadline for coal-fired power plants to meet sulfur emission limits under the ARP. I measure the number of coal mines and the tons of coal extracted in the watershed using individual coal mine production data from the Energy Information Administration ("EIA"). It includes the tons of coal produced by each mine in each year from 1985 to 2005. I merge EIA coal mine data with Mine Safety and Health Administration ("MSHA") data containing mine latitude and longitude coordinates. Where a utility has multiple intakes downstream of multiple watersheds, I measure upstream coal production as the sum of production across those watersheds.

The demand for coal from each mine depends on the physical characteristics of its coal. Thus, the coal production upstream of a utility depends on the average sulfur percentage in coal deposits in the watersheds where the utility's intakes are located and those that are upstream of the intakes. I measure a utility's upstream coal sulfur as the mean sulfur percentage across all watersheds within two watersheds upstream of its intakes. I use the USGS COALQUAL dataset to measure the sulfur percentages present in coal within a watershed. The USGS COALQUAL dataset consists of geospatially explicit drilled coal core samples from across the US. Samples measure characteristics, including the percentage of coal weight that consists of sulfur. I match COALQUAL samples to watershed boundaries that lie within 20 km of their coordinates, irrespective of whether coal production took place in that watershed. I assign a sulfur value of zero to watersheds that I cannot match to a drilled coal core sample. This approximates coal deposits with the potential to be extracted. The mismeasurement of sulfur levels due to extreme variation within watersheds, where some high-sulfur coal watersheds may actually contain low-sulfur coal, is not an issue since watersheds have low variation in measured coal sulfur levels.

High-sulfur (greater than two percent sulfur) coal production fell between 1985 and 2005, while low-sulfur (less than two percent sulfur) coal production was more resilient and in some places increased. Figure 2 plots a histogram of the sulfur percentage of the coal bed within the watersheds where a utility water intake and coal production are located. The sulfur content of watersheds' coal beds ranges from zero to 4.5 percent, with most of the watersheds below 1.5 percent. Slightly more than half of the watersheds have low-sulfur coal beds.

In Figure 3, the watersheds that contain coal production and are upstream of a utility water intake are green, while the watersheds that contain coal production and are not upstream of a utility are red. Most watersheds in my sample are located in Pennsylvania, Kentucky, and West Virginia. The eastern coal fields more frequently occur in watersheds

upstream of drinking water utilities. Western coal production takes place more frequently in watersheds without utility water intakes and is less well represented in my sample.

Figure 4 plots coal production from high-sulfur and low-sulfur watersheds from 1983 until 2005. The mean quantity of coal produced in watersheds with low-sulfur coal increased over this period, while it fell in watersheds with high-sulfur coal. The same trend appears in the total national quantity of coal produced in watersheds with low-sulfur coal. The average number of active coal mines within watersheds with low-sulfur coal fell until 1995, when it stabilized and slightly increased. The number of coal mines in watersheds with high-sulfur coal fell continuously over the same period.

Coal characteristics vary within coal regions, so the relative differences in coal production between high- and low-sulfur coal resulted in within-region spatial variation in which watersheds experienced increases and decreases in production. Figure 5 plots the change in coal production at the watershed level between 1985 and 2005, with circles sized proportionately to the change. Within states and regions, coal production rarely experienced a uniform decline or increase. Coal production mostly decreased in Pennsylvania and mostly increased in West Virginia. Other states' coal production saw both increases and decreases. Production both increased and decreased in the western and eastern regions.

I use descriptive and summary data to show that the reduction in high-sulfur coal production also reduced the size of the population reliant on a utility exposed to coal production. These results do not reflect the actual population served by utilities affected by coal mines from 1985 to 2005 because I rely on the population served by a utility using the SDWIS snapshot from the third quarter of 2024. However, I have ongoing work to estimate the size of the population served by each utility from as early as 1990 using backcasting and machine learning.

The increases in coal production largely did not occur upstream of utility water intakes. Figure 6 plots the location and size of the population that obtains its drinking water from a utility directly downstream of a coal mining watershed. Circles are proportional to the total population reliant on drinking water directly downstream of a coal mining watershed. Red circles indicate a population exposed to more upstream coal mining in 2005 compared to 1985; blue circles indicate a population exposed to less upstream coal mining in 2005 compared to 1985. The number of people exposed to coal mining through utility drinking water fell from 1.3 million in 1985 to 0.2 million in 2005. Coal mining increased in areas that largely did not provide source water to utilities.

5 The impact of coal mining on downstream utility contamination

5.1 Empirical framework

I measure the effect of coal mining on IOC water contaminant concentrations at utilities. This establishes whether coal mining is a convincing source of contamination to study the effect of contamination on utility and regulator behavior under a self-reporting contamination control regulation. I limit the estimation to arsenic, nitrates, barium, and selenium, as the MCL for these IOC contaminants did not change between 1985 and 2005, and these were the IOC contaminants that were retained after cleaning the SYR2 data.

Higher levels of coal production are associated with higher average contamination levels. Panel B of Table 3 measures the mean contaminant concentration readings at utility-years with non-zero coal extraction in upstream watersheds. Compared to the mean contaminant concentrations in the full sample of utilities in Panel A, utility-years downstream of active coal extraction have slightly higher concentrations of arsenic and barium, and slightly lower concentrations of nitrates and selenium. These raw comparisons do not account for utility and regional differences in contaminant levels.

In order to control for utility and regional effects that influence contaminant concentration levels, I estimate the impact of coal mining on the mean contaminant concentrations at utilities using the regression equation

$$Concen_{cht} = \beta \cdot \text{UpstreamCoalProd}_{ct} + \rho_c + HUC02_h \cdot \tau_t + \epsilon_{cht} \tag{3}$$

$Concen_{cht}$ is the mean concentration of a contaminant measured at utility c in HUC02 h in year t using SYR2 data from 1998 to 2005. $\text{UpstreamCoalProd}_{ct}$ is the coal produced during year t, in millions of short tons, in the HUC12s upstream of utility c's intakes. β is the effect of an additional one million short tons of coal mined upstream of utility c in year t. Utility fixed effects are included as ρ_c. To control for annual industrial and watershed level contamination trends that affected the entire watershed, I include HUC02 fixed effects interacted with time fixed effects $HUC02_h \cdot \tau_t$. Standard errors are clustered at the utility level.

Equation 3 identifies β from relative differences in exposure to annual coal production rather than comparing treated units to a control, since there are no utilities in my sample that are not downstream of coal production and can act as control observations. The identifying assumption requires that the contamination concentrations at utilities that experience a large decline in coal production would have trended the same as the pollution

concentrations at utilities with a small decline.

I do not treat these estimates as causal. There is no instrument for upstream production here and no untreated comparison group. The concentration data cover a subset of utilities from 1998 to 2005 rather than the full panel, and the treatment is measured as annual tons of coal produced rather than as the count of active mines used in the rest of the paper. The section establishes descriptive evidence for how coal production affects utility contaminant concentrations. These results motivate using coal mining as a contamination shock to utilities.

5.2 Comparability of utilities by upstream production

Since the estimates of equation 3 are observational, it matters whether the utilities that received more upstream coal production already differed from those that received less. Table 5 regresses upstream production from 1998 to 2005 on utility characteristics. I do not have utility characteristic data that varies over time and so cannot include utility or year fixed effects. However, I include state fixed effects. Columns one and two use annual production, the intensive margin from which equation 3 is identified, and columns three and four use an indicator for whether there was any upstream production.

On the intensive margin, utility characteristics are jointly insignificant with state fixed effects. Among utilities that have upstream mining, neither utility size, nor the number of water intakes a utility operates, nor whether it draws on surface water, nor whether it is publicly owned predicts how much coal is mined upstream. On the extensive margin, the characteristics are jointly significant, driven by the number of intake facilities: utilities operating more intakes are more likely to have any upstream mining at all, which is unsurprising since more intakes mean more watersheds in which a mine can sit. This motivates identifying equation 3 from the intensive margin of annual production rather than from whether a utility has any upstream production.

5.3 Results

Table 6 contains the results of equation 3 estimated on IOC contaminant concentration tests throughout utility water processing stages. The contaminant concentration sample is small because it is restricted to the utilities and years for which the Six-Year Review reported readings.

Panel A restricts the sample to coal production in the watershed directly upstream of a utility intake. An additional one million short tons of coal mined in that year is associated with higher mean concentrations of arsenic and nitrates. Arsenic increases by

0.0034 mg/L with each additional one million short tons of coal mined upstream. This is economically significant, equivalent to 1.2 times the mean arsenic concentration of 0.0028 mg/L, and is statistically significant at the 1% level. The effect represents 34 percent of the arsenic MCL of 0.010 mg/L that took effect in 2006, and 6.8 percent of the 0.050 mg/L MCL in force before then. An additional one million short tons of coal increases nitrates by 0.075 mg/L. The effect is statistically significant at the 10% level and accounts for almost 10 percent of the mean nitrate level.

Panel B restricts the sample to coal production within two watersheds upstream of a utility intake. An additional one million short tons of coal mined in that year is associated with higher mean concentrations of nitrates. Arsenic is no longer statistically significant and is economically insignificant. An additional one million short tons of coal increases nitrates by 0.061 mg/L. The effect is statistically significant at the 1% level.

Coal production is associated with increases in contaminant concentrations at utilities downstream. The effects are economically and statistically significant, but within the sample, they are not associated with increases in contaminant concentrations above the MCLs. This is evidence that upstream coal mining can be used to measure the response of utilities to increases in water contamination.

6 An instrumental variable for upstream coal mining

Two sources of endogeneity need to be addressed to identify the causal effect of upstream coal mining on utilities. First, coal mines are located in areas with particular geological characteristics, such as coal seam accessibility and transportation corridors, that may also independently predict water quality and utility characteristics. Second, vulnerable utilities may receive regulator support to protect their source water and block upstream mine siting. Utilities that successfully resist upstream mines may be worse at maintaining compliance, generating a negative correlation between upstream mining and utility ability that understates the true contamination from mining.[2]

I have shown that coal production is associated with higher water contamination levels at drinking water utilities. I will use an IV for coal production to investigate the effect of contamination on utility self-reporting, contaminant limit exceedances, and regulatory enforcement. An IV is necessary to address the ability of utility characteristics to affect the spatial and temporal distribution of coal mines and drinking water utilities which,

2. For example, the EPA Source Water Protection program can designate areas where drinking water is sourced, especially for utilities with poor water quality performance, and take an inventory of pollution from human activities or natural sources that pose the greatest threat to source water, making it difficult to site pollution-producing activities in these areas.

if estimated with OLS, would lead to biased coefficient estimates due to omitted variable bias. Utility characteristics that determine performance are likely correlated with the number of mines a utility is exposed to upstream. For example, a utility with inferior water treatment infrastructure that has limited ability to improve raw water may receive extra regulator support to protect its source water from coal mining. A utility with inferior water treatment infrastructure is more likely to violate water quality regulations than one with advanced water treatment infrastructure. This results in the number of upstream coal mines being negatively correlated with violations. A utility's ability is likely to change over the 20-year time span I study and cannot be controlled with utility fixed effects. Without data on utility ability, an OLS regression of utility behavior on coal production leads to an underestimate of the true effect of coal mining on utility behavior.

I adapt the IV from Douglas and Wiggins (2015) to predict the number of mines operating upstream of the utility based on the sulfur content of coal in the upstream watershed and whether the time period is before or after the 1995 deadline for coal-fired power plants to reduce sulfur emissions under the ARP.

I estimate a two-stage least squares regression. The first stage is a regression of the number of active coal mines upstream of a utility on the mean sulfur percentage of coal weight across its upstream watersheds, interacted with a binary variable equal to one for all years after 1995 and zero otherwise. The first stage is

$$\begin{aligned} \text{NumMines}_{ct} = \alpha_0 + \alpha_1 \text{NumFacility}_{ct} + \alpha_2 \text{UpstreamCoalSulfur\%}_c \cdot \text{Post95}_t \\ + Y_t + C_c + \nu_{ct} \end{aligned} \tag{4}$$

The dependent variable, NumMines_{ct}, is the total number of mines directly upstream of utility c's intake in year t. The exogenous covariates are NumFacility_{ct}, the number of facilities the utility operates in year t, year fixed effects Y_t, and utility fixed effects C_c. AMD is more common when the minerals contain high levels of sulfur, making the incidence of AMD increase with coal sulfur levels (Schweinfurth 2009). Upstream sulfur is controlled for with utility fixed effects since sulfur levels do not change over time. The excluded instrument is the interaction between $\text{UpstreamCoalSulfur\%}_c$, the mean sulfur percentage of coal weight across the watersheds upstream of utility c, and Post95_t, a dummy variable equal to one for the years after 1995, the deadline to implement Phase I of the ARP, and zero otherwise. Standard errors are clustered at the utility level.

The coal sulfur content before and after 1995 predicts the amount of coal production well. Figure 7 plots the mean and standard deviation of HUC12 coal sulfur percentages by bins of the number of active coal mines in a HUC12 before 1995 and after 1995. In

addition, it plots linear fit lines separately for before 1995 and after 1995. After 1995, coal production heavily shifted towards coal with sulfur percentages below 1.5%. The change in production away from high-sulfur coal after the ARP is strongly demonstrated by the line of linear fit becoming more downward sloping after 1995, indicating that while there was a bias towards coal production in low-sulfur coal areas before 1995, there was a strong increase in preference away from high-sulfur coal or towards even lower sulfur coal after 1995. The time-contingent switch in coal production based on sulfur content supports the structure of the variable $\text{UpstreamCoalSulfur\%}_c \cdot \text{Post95}_t$.

The strength of the instrument is still evident after controlling for covariates and fixed effects. Figure 8 is a scatter plot of the residualized number of upstream coal mines and the residualized instrumental variable. There is a negative relationship between the residualized number of upstream coal mines and $\text{UpstreamCoalSulfur\%}_c \cdot \text{Post95}_t$.

The first stage is sufficiently strong. Table 7 reports the first-stage F-statistic, computed as the squared clustered t-statistic on the excluded instrument, which equals the effective F-statistic of Montiel Olea and Pflueger (2013) in this just-identified setting. The F-statistic of 49.2 exceeds their critical value of 23.1 for a 5%-level test against 10% worst-case bias, well above the conventional rule-of-thumb threshold of 10 proposed by Staiger and Stock (1997).

The instrument requires monotonicity in the first stage to recover the local average treatment effect (LATE) estimate of the instrument.[3] In this setting, the instrument is $Z_c = \text{UpstreamCoalSulfur\%}_c \cdot \text{Post95}_t$, which equals zero before 1995 and $\text{UpstreamCoalSulfur\%}_c$ after. For a given sulfur level w, monotonicity requires either $\text{NumMines}_c(0) \leq \text{NumMines}_c(w)$ for all c, or $\text{NumMines}_c(0) \geq \text{NumMines}_c(w)$ for all c. This permits the direction of the response to vary with sulfur content. For example, at $\text{UpstreamCoalSulfur\%}_c = 1$ (low sulfur), the number of mines increases after 1995, so monotonicity requires $\text{NumMines}_c(0) \leq \text{NumMines}_c(1)$ for all c. At $\text{UpstreamCoalSulfur\%}_c = 4$ (high sulfur), the number of mines falls after 1995, so monotonicity requires $\text{NumMines}_c(0) \geq \text{NumMines}_c(4)$ for all c. These two conditions are compatible: monotonicity is satisfied so long as each pairwise comparison is uniform across units, even when low- and high-sulfur areas respond in opposite directions.

An implication of monotonicity is that there are no defier utilities. A defier utility experiences an increase in the number of coal mines it is downstream of after 1995 due to being downstream of a high-sulfur coal watershed, but would experience a decrease

3. Stating monotonicity more formally and following Angrist and Imbens (1994), let Ψ be the support of the instrument Z_c, and for each $z \in \Psi$ define a random variable $D_c(z)$. The monotonicity assumption requires that for all $z, w \in \Psi$, either $D_c(z) \leq D_c(w)$ for all c, or $D_c(z) \geq D_c(w)$ for all c. This condition applies pairwise to elements of Ψ and imposes no restriction on the ordering of z and w.

in the number of coal mines it is downstream of after 1995 due to being downstream of a low-sulfur coal watershed. This is unlikely since high-sulfur coal was more expensive than low-sulfur coal after 1995. To be a defier requires a power plant customer of a high-sulfur coal watershed to increase its coal demand after installing sulfur scrubbers and to increase its electricity market share. Power plants that rely on high-sulfur coal and scrubbers are likely to demand less coal since scrubbers are expensive to install, increase operating costs, require higher electricity rates to retain profits, and lose electricity market share. If some high-sulfur regions had a comparative advantage in low-cost production that offset the ARP cost increase, such as very low labor costs or transportation advantages, they might expand production even as ARP made their coal relatively more expensive. Such an expansion creates defiers only if it would not have occurred had those same low-cost regions instead contained low-sulfur coal; otherwise, it creates never-takers. A never-taker is a utility that is downstream of a low-sulfur watershed that experiences no increase in coal mines after 1995, and a utility that is downstream of a high-sulfur watershed that experiences no decrease in coal mines after 1995. A never-taker is not a violation of monotonicity and only reduces first-stage power.

The second stage of the IV regression is

$$\begin{aligned} \text{UtilityOutcome}_{ct} = \beta_0 + \beta_1 \text{NumFacility}_{ct} + \gamma \widehat{\text{NumMines}}_{ct} \\ + Y_t + C_c + \epsilon_{ct} \end{aligned} \tag{5}$$

In the second stage, the dependent variable is a binary variable equal to one if utility c received an MR violation, MCL violation, regulator visit, or enforcement from the regulator in year t, $\text{UtilityOutcome}_{ct}$. Any national regulatory changes to the SDWA that affected all utilities are controlled for with time fixed effects. Since the sulfur content of a coal deposit is a fixed geological endowment, I control for it with utility fixed effects.

In addition to instrument relevance, the IV produces causal estimates of the impact of coal mining on utility and regulator behavior if the instrument satisfies the independence and exclusion restrictions (Angrist and Pischke 2009). Conditional on utility and year fixed effects, the upstream coal production to which utilities are exposed through the instrument is independent of their potential outcomes because the scope of the ARP and the timing of its first phase were both determined independently of utility drinking water quality and utility characteristics. The instrument identifies variation in the location of coal production that is independent of unobserved utility characteristics and is based on the shift in coal-fired power plants' demand for lower-sulfur coal after 1995 in order to meet the sulfur dioxide emission standards of the ARP. The ARP was a national

clean air policy that was not written or enacted to address drinking water quality issues. The instrument exploits the national change in power plants' demand for coal by sulfur content, the timing and stringency of which were set without reference to any drinking water utility. The effects of the ARP on coal production were determined by national and international energy markets that local drinking water utilities or local utility drinking water quality did not affect. Local utility characteristics regarding drinking water quality or local power over source protection did not affect the scope of the ARP, the stringency of the ARP law, the degree to which low-sulfur coal should be part of the abatement technology, or the date of Phase I of the ARP. The timing of the ARP did not coincide with major drinking water regulations.

The instrument would violate independence if the unobserved utility characteristics that affect drinking water quality violations and the siting of coal mines changed after 1995 for utilities with different amounts of sulfur as a percentage of coal weight. Knowing about sulfur as a percentage of coal weight upstream of a utility after 1995 tells us nothing about how much political power a local utility has over mine siting.

Exogeneity requires the instrument to affect utilities only through its effect on the number of coal mines. A threat to this would be if the SDWA regulation changed after 1995 and had a differential impact on utilities downstream of high-sulfur coal before and after 1995 compared to utilities downstream of low-sulfur coal before and after 1995. Changes in SDWA rules that affected all utilities in the same way are controlled for with time fixed effects. For example, in 1991, the monitoring and reporting schedule changed for all utilities and is controlled for with time fixed effects. Any change to an MCL would apply to all utilities and be controlled for with time fixed effects.

The exclusion restriction fails when the instrument affects regulator behavior through another path outside of its effect on coal mining. The exclusion restriction would be threatened if the ARP Phase I directly changed state EPA enforcement practices in a way that affected utilities differently according to the percentage of sulfur by weight in upstream coal. However, states were not primarily responsible for enforcing the ARP; it was a federally regulated program that, by itself, would not have affected state primacy enforcement of the SDWA.

Another exogeneity threat is local economic activity. The shift in demand away from high-sulfur coal reduced mining employment and income in the communities that a utility serves, which could affect a utility's staffing and revenue, as well as a state regulator's enforcement priorities, without operating through water contamination. Absorbing this channel requires state-by-year fixed effects, which I plan to incorporate in the near future.

The exclusion restriction cannot be tested directly in a just-identified model, but in-

dividual alternative pathways can be tested. I test one such pathway by regressing the number of a utility's active intake facilities, a utility characteristic, on the instrument. This variable also enters both stages as an exogenous covariate, so evidence that the instrument moved it would indicate both an alternative pathway and that it is an inappropriate control. Table 8 reports the results. The coefficient on the instrument is small and statistically indistinguishable from zero, both in the specification with utility and year fixed effects and in the specification with state by year fixed effects. This rules out one pathway but does not prove the exclusion restriction, since that is fundamentally untestable.

Relevance, independence, and exclusion are sufficient for the IV estimates to produce causal estimates of the effect of coal mining on drinking water utility and regulator behavior. Relevance is verified above. Independence and exclusion are not testable; I argue for each on the institutional grounds set out in this section. Monotonicity is required not for causality but for interpretation. Under monotonicity, the estimate is a local average treatment effect: the effect of an additional upstream coal mine at the utilities whose upstream mining responded to the ARP. Were monotonicity to fail, the estimate would still be assembled from causal effects, but it would weight defier utilities negatively and would no longer be an average effect for an identifiable group of utilities.

7 The impact of coal mining on utility self-reporting and contaminant limit exceedance

I now measure the effect of coal mining on utility self-reporting and contamination exceedance violations. The theoretical model predicts that coal mining causes utility self-reporting to fall and the probability of a contaminant exceedance to increase. Table 9 reports the results of equation 5, estimating the effect of an additional active coal mine on the likelihood that a utility receives either an MCL or MR violation for nitrates, arsenic, and inorganic chemicals using OLS, two-stage least squares, and reduced-form regressions.

Coal mining increases the likelihood that a utility experiences an MR or MCL violation in specifications with utility and state by year fixed effects and those with utility and year fixed effects. Estimated with OLS and utility and state-by-year fixed effects, an additional active coal mine upstream increases the likelihood of an MCL or MR violation for nitrates, arsenic, and IOCs by 0.54, 0.43, and 0.28 percentage points, respectively. The reduced form effect of the instrument measures how much more a one-percentage-point increase in upstream sulfur affects the likelihood of violations after ARP Phase I relative to before.

A one-percentage-point increase in upstream coal sulfur leads to a 1.5 to 2 percentage point reduction in the likelihood that a utility experiences an MCL or MR violation for nitrates, arsenic, or IOCs after 1995 compared to before 1995. Since coal production fell most acutely in high sulfur coal areas after 1995, this suggests that in areas where the number of coal mines decreases and upstream contamination subsequently improves, the likelihood of a violation decreases.

In the IV regression, one additional active coal mine increases MCL or MR violations for nitrates, arsenic, and IOCs by 3.89, 4.00, and 3.09 percentage points, respectively. These effects are statistically significant at the 10% level for IOCs and at the 5% level for arsenic and nitrates. The OLS estimates are roughly one-seventh to one-eleventh the size of the IV estimates, suggesting that the omitted variable bias is negative.

Coal mining raises MR violations, supporting the theoretical model's Proposition 2. The results presented in Table 10 estimate equation 5 on MR violations of arsenic, nitrate, and IOCs. An additional coal mine increases the likelihood of an MR violation for nitrates, arsenic, and IOCs by 3.94, 3.78, and 3.06 percentage points, respectively. These effects are of the same magnitude as the effects of coal mining on a combined measure of MR and MCL violations, so the entire effect of mining on utilities is driven by MR violations rather than MCL violations. The effect of mining on MR violations for arsenic and nitrates increases in precision compared to combined MR and MCL violations for those contaminants. The effects range from roughly 70 percent of the mean violation rate to the full mean rate. Table 1 reports the mean violation rates of arsenic, nitrates, and IOCs at 3.73 percent, 5.68 percent, and 4.31 percent, respectively.

Coal mining has almost no economically significant effect on the incidence of MCL violations. The impact of coal mining on utility MCL violations for nitrates, arsenic, and IOCs is presented in Table 11. Arsenic MCL violations are 0.22 percentage points more likely to occur with an upstream coal mine instrumented with the ARP timing and upstream coal sulfur. This effect is statistically significant at the 5% level. The IV estimated effects of coal mines on the likelihood that a utility experiences a nitrate or inorganic chemical MCL violation are statistically and economically insignificant. The point estimate for the effect of an additional mine on the likelihood that a utility receives a nitrate MCL violation is -0.11 percentage points, and for an inorganic chemical MCL, it is -0.20 percentage points. Neither of these effects is statistically significant, reflecting the extreme rarity of MCL violations in the sample.

Rising MR violations are consistent with Proposition 2 in the theoretical model. Regulators require more self-reporting from utilities downstream of impaired water, raising self-reporting costs. The theoretical model predicts that mining raises under-reporting

through a second channel by changing the compliance costs. Compliance costs rise with mining because mining raises baseline water contamination and the effort required to treat water to any given standard. As coal mining increases, self-reporting costs and compliance costs rise, both of which increase the benefits of under-reporting.

Coal mining would not affect MCL violations if it did not raise contaminants above the MCL in my sample, or if MR violations concealed contaminant exceedances. In the theoretical model, concealed contaminant exceedances are discovered by the regulator through inspections of under-reporting utilities.

8 The impact of coal mining on regulator visits and enforcement

I estimate the response of regulator visits to coal mining, including sanitary surveys, enforcement visits, and inspections. Table 12 presents the response of regulator visits to coal mining by estimating OLS, equation 5, and the reduced form equations. Column five reports the response of inspection visits. I find that an additional coal mine leads to a utility experiencing a 2.13 percentage point increase in inspection visits by regulators. This is statistically significant at the 5% level, and since it represents a 62% increase over the baseline inspection visit rate of 3.43%, it is economically significant. Regulators are likely to discover concealed contaminant exceedances during inspection visits and issue punitive or corrective enforcement. Column three reports the response of enforcement visits to coal mining; an additional coal mine raises the likelihood of an enforcement visit by 1.07 percentage points, which is not statistically significant. The effects on sanitary, technical assistance, and sample collection visits are also not statistically significant.

I estimate the effect of coal mining on the enforcement utilities receive. This provides evidence of the results of regulator inspections since regulators would punish utilities harshly for under-reporting in order to conceal contaminant exceedances. This also provides evidence for the disincentives regulators create for utility under-reporting. Table 13 presents the responses of informal, formal, and any type of enforcement to coal mining by estimating OLS, equation 5, and a reduced form. I cannot detect a statistically significant effect of coal mining on enforcement when I include state by year fixed effects. The point estimates are negative, suggesting coal mining reduces the likelihood that a utility receives enforcement. This evidence suggests that coal mining is unlikely to cause utilities to under-report in order to conceal MCL violations, since despite an increase in inspection visits, enforcement does not increase. At the high rate of inspection visits caused by

increased mining, concealed contaminant exceedances would likely be discovered, and enforcement would increase. The enforcement results also suggest that the penalties for under-reporting are mild, indicating that utilities have a low regulatory disincentive to under-report. A low penalty for under-reporting, t in the theoretical model, lowers the self-reporting cutoff $\hat{c}(a)$ at every level of negligence, regardless of the probability of inspection and the sanction for a concealed contaminant exceedance.

9 Over-identification with an upstream and a downstream sulfur instrument

The instrument in the previous sections interacts the post-1995 indicator with upstream coal sulfur content. A second instrument is available from the same source of variation: the post-1995 indicator interacted with the average coal sulfur content of watersheds within two watersheds downstream of the utility's intake. Downstream coal mines cannot contaminate the intake, so downstream sulfur should affect the utility only by predicting upstream mining, since the same regional coal markets and power plant demand for low-sulfur coal drive both. Using both instruments for the single endogenous regressor, the number of upstream coal mines, makes the model over-identified by one degree, so the exclusion restrictions become partly testable.

The first stage remains strong. The joint F-statistic for the two instruments is 24.68 with state-by-year fixed effects and 19.95 with utility and year fixed effects, both above 10, though lower than the 49.20 for the upstream instrument alone (Table 16). I test the null that both instruments are valid with Hansen's J statistic, robust to clustering at the utility level. Tables 17–22 report the results. The test does not reject in any of the 29 specifications; the smallest p-value is 0.12. With one overidentifying restriction, the test is informative only against the two instruments implying different effects, and it cannot detect a violation shared by both. The over-identified estimates are close to the single-instrument estimates. For monitoring and reporting violations with state-by-year fixed effects, an additional upstream coal mine raises the probability of a nitrates, arsenic, and inorganic chemicals violation by 3.96, 3.82, and 3.11 percentage points, compared with 3.94, 3.78, and 3.06 using upstream sulfur alone. Table 20 shows the results of regressing the number of intake facilities on both instruments.

10 Discussion

By raising self-reporting costs, coal mining can lower self-reporting even if it does not push contamination above the MCL. Contaminant concentration readings do not rise above the MCL across utilities in the SYR2. These utilities differ in their compliance costs, and, returning to the model, in their negligence. This implies that over the range of utilities in the data, the likelihood of exceeding the MCL upon self-reporting is small, $q(a) \to \epsilon$. The self-reporting cutoff $\hat{c}(a) = t - (r - ps)q(a)$ then sits close to t, and a utility deciding whether to report weighs the direct cost of self-reporting against the penalty for skipping it, with no contaminant exceedance to conceal.

I test the effect of self-reporting costs on self-reporting by estimating the effect of increased nitrates testing requirements on the likelihood that a utility under-reports. Nitrates, unlike other IOCs, require increased testing when contaminant concentrations exceed 50% of the nitrates MCL. Other IOCs increase testing based on source water risk instead of a single contaminant concentration threshold. I estimate the effect of SYR2 contaminant concentrations of nitrates on the likelihood of nitrate self-reporting violations. Table 14 presents the results; columns one and two report the likelihood of an MR violation for nitrates within one year and within six months of a contaminant reading. A nitrate reading above 50% of the nitrate MCL increases the likelihood of a nitrate self-reporting violation by 59 percentage points and 26 percentage points within the next twelve and six months, respectively. I find no effect on the likelihood of an MR violation for nitrates in the twelve or six months following a one standard deviation increase in mean nitrate readings. These effects are suggestive and not causal.

I find evidence that under-reporting receives low enforcement: enforcement does not increase as mining increases and self-reporting decreases. This reduces the disincentive to under-report due to cost increases associated with self-reporting. As a result, regulators must increase inspection visits to utilities to determine the water quality and, ultimately, the health risk of an under-reporting utility. The welfare effects of this are not a priori clear. Regulators may benefit from economies of scale that make their monitoring cheaper than the utilities' cost of self-reporting. However, the economies of scale would have to overcome the large amount of resources that the regulator would have to devote to monitoring all utilities in a timely manner.

The combined evidence that coal mining causes regulators to conduct more inspection visits while not increasing enforcement suggests that utilities are not concealing contaminant exceedances. In addition, SYR2 contaminant concentrations are far below the MCL. A utility would not exceed the MCL for barium, nitrates, or selenium, even at the

maximum contaminant level observed in the sample and the highest single-year dose of upstream coal production. Arsenic is the exception: the sample maximum of 0.011 mg/L stays below the pre-2006 MCL of 0.05 mg/L but exceeds the stricter 0.01 mg/L MCL that took effect in 2006. This suggests that utilities maintain water quality well below MCL levels. However, this result is limited to a subset of utilities and a subset of the time period included in SYR2. Inspection visits at the high levels seen in response to coal mining would fail to reveal contamination violations because utilities were not violating contamination limits. If utilities were concealing exceedances, the rise in inspection visits should have translated into more enforcement; instead, enforcement falls or does not increase, and the concentration readings that are available sit well below the contaminant limit. The fall in self-reporting is consistent with a response to the rising cost of self-reporting rather than an attempt to conceal a contaminant exceedance, subject to the concentration data covering only part of the sample. Monitoring gaps of this kind can be overcome by continuous monitoring technology that the regulator controls, making violations easier to spot and successful enforcement more likely.

11 Conclusion

I present evidence that under a self-reporting regulatory framework designed to monitor a quality target, self-reporting falls if contamination increases, even if that quality does not fall below regulatory standards. I show this in the context of coal mining and utilities: utility SDWA self-reporting of water quality falls as water quality exogenously deteriorates. An additional active coal mine upstream raises the likelihood of under-reporting water quality for inorganic chemicals, arsenic, and nitrates by three to four percentage points, while leaving the likelihood of a contaminant limit violation unchanged. Utility under-reporting increases as self-reporting becomes costlier when coal mining impairs water quality at utilities and raises the amount of self-reporting utilities are required to complete. Consistent with that cost channel, a nitrate reading above half the contaminant limit, the level at which the regulator requires more frequent testing, is followed by a large increase in the likelihood of a nitrate self-reporting violation. I do not detect contaminant concentration levels increasing above maximum contaminant levels and cannot conclude that upstream coal mining is increasing pollution to the extent that utilities need to install improved abatement technology to meet SDWA maximum contaminant level compliance.

I find that penalties for not self-reporting are not high enough to induce utilities to self-report as self-reporting costs rise. Regulators respond to upstream mining by diverting

their attention to under-reporting utilities rather than sanctioning them. An additional upstream mine raises the likelihood of an inspection visit by 2.1 percentage points, while having no detectable effect on enforcement. The fact that regulators inspect these utilities so much more often without enforcement suggests that the visits find nothing to sanction and that utilities are not under-reporting to conceal a contaminant exceedance. The regulator can use inspection visits to assess the threat posed to public health by an MR violation and can implement a less costly type of enforcement when the threat is discovered to be low. However, without punishing under-reporting, regulators will have to conduct more inspection visits to ensure that contaminant concentration levels do not exceed health limits.

I do not address the efficiency of shifting monitoring onto the regulators. Water quality is generally perceived as a local issue with limited externalities (Olmstead 2010). Without externalities, it may be inefficient for a state regulator to expend resources to monitor a local utility. However, regulators may be able to conduct monitoring at a lower marginal cost than small utilities. Small utilities find the burden of water quality management particularly heavy. I would need to take into account the regulators' preferences in order to measure efficiency. Regulator preferences affect enforcement, not only violation severity (Kang and Silveira 2021).

The findings here suggest that the regulatory design of the SDWA, which relies on utility self-monitoring and assigns substantially lower penalties to non-monitoring than to detected contamination, creates systematic incentives to under-report. Increasing penalties for non-monitoring in high-pollution areas may be a more effective lever for improving drinking water outcomes than increases in MCL stringency alone.

A Proofs of the propositions

This appendix contains the derivation of the utility's negligence choice and the statements and proofs of the three propositions summarized in Section 3. Notation follows the setup there.

A.1 Optimal negligence

The utility's problem is to minimize the losses of the opportunity cost of choosing a negligence below $\bar{a}$ and the expected cost $e(a;c)$. Therefore, the utility maximizes $-\theta[b(\bar{a}) -$

$b(a)] - e(a; c)$ with respect to a. The first-order condition is piecewise:

$$\theta b'(a) = r\, q'(a) \qquad \text{(self-reporting branch)} \tag{6}$$

$$\theta b'(a) = ps\, q'(a) \qquad \text{(under-reporting (MR) branch)} \tag{7}$$

Because $r > ps$, the marginal penalty is lower on the under-reporting branch than on the self-reporting branch.

Which branch a utility takes is not settled by $\hat{c}(a)$ evaluated at either candidate negligence level, because $\hat{c}$ is itself decreasing in the negligence the utility goes on to choose. Proposition 2 shows that the two branch payoffs cross at a single cost draw, and that this crossing point lies between $\hat{c}$ evaluated at the two candidates. Utilities that draw a higher self-reporting cost are more likely to under-report, and a rightward shift in the population's cost distribution raises the share of utilities that do so without moving any type's own crossing point.

A.2 The propositions

The model predicts that when water quality deteriorates due to increased contamination, self-reporting rates fall.

Proposition 1: Negligence is increasing in compliance costs. Within each reporting branch,

$$\frac{\partial a}{\partial \theta} = \frac{b'(a)}{-\theta b''(a) + \rho\, q''(a)} > 0,$$

where $\rho \in \{r, ps\}$ is the branch's sanction. Under the interiority condition the first-order condition characterizes the optimum, and the denominator is positive because $b'' < 0$ and $q'' \geq 0$, which is also the second-order condition for the negligence problem within a branch. Since $r > ps$, a utility that switches from self-reporting to under-reporting faces a lower marginal sanction and moves to a higher negligence level, so negligence rises with θ overall, with an upward jump at the switch.

Proposition 2: The share of under-reporting utilities increases as contamination increases, $\partial MR/\partial m \geq 0$.

For a compliance-cost type θ facing a marginal sanction $\rho > 0$, let $a(\rho; \theta)$ denote the negligence level solving $\theta b'(a) = \rho\, q'(a)$. The negligence a self-reporting utility chooses is $a_{SR}(\theta) \equiv a(r; \theta)$ and the negligence an under-reporting utility chooses is $a_{MR}(\theta) \equiv a(ps; \theta)$, with $a_{SR}(\theta) < a_{MR}(\theta)$ since $r > ps$.

The utility's objective is not globally concave: the marginal penalty drops from $r\, q'(a)$ to $ps\, q'(a)$ at the negligence level where $\hat{c}(a) = c$. Writing the utility's problem

as a maximization, $\max_a\{\theta b(a) - \theta b(\bar{a}) - \min[\, c + rq(a),\ \ t + ps\, q(a)\,]\}$, the inner minimum enters with a negative sign and is therefore a maximum over the two reporting branches, which can be exchanged with the maximization over a: $\max_a \max\{\cdot,\cdot\} = \max\{\max_a(\cdot), \max_a(\cdot)\}$, since neither branch's maximizer depends on the other's value. So the value of the problem is the larger of two per-branch maxima, each built from $W(\rho;\theta) \equiv \max_{a\in[0,\bar{a}]}\{\theta b(a) - \rho\, q(a)\}$ for $\rho \in \{r, ps\}$, each attained at a unique $a(\rho;\theta)$ since $\theta b(a) - \rho\, q(a)$ is strictly concave. No negligence level besides $a_{SR}(\theta) \equiv a(r;\theta)$ and $a_{MR}(\theta) \equiv a(ps;\theta)$ is ever optimal, for any c. The payoff from self-reporting is $W(r;\theta) - \theta b(\bar{a}) - c$ and the payoff from under-reporting is $W(ps;\theta) - \theta b(\bar{a}) - t$, and the utility takes whichever is larger. The former falls one-for-one in c and the latter does not involve c at all, so their difference is affine in c with nonzero slope and crosses zero exactly once. Cancelling $\theta b(\bar{a})$ and applying the envelope theorem, $\partial W(\rho;\theta)/\partial\rho = -q(a(\rho;\theta))$, the crossing point is the type-specific switching cost

$$c^*(\theta) \equiv t + W(r;\theta) - W(ps;\theta) = t - \int_{ps}^{r} q\big(a(\rho;\theta)\big)\, d\rho. \tag{8}$$

Since $q(a(\rho;\theta)) \le q(\bar{a})$ for every ρ, the maintained assumption $t \ge (r - ps)q(\bar{a})$ delivers $c^*(\theta) \ge 0$. When negligence carries no exceedance risk, $q \equiv 0$, the integral vanishes and the cutoff is simply the under-reporting penalty t. The cutoff depends only on the sanctions and on the utility's own compliance-cost type, not on contamination m.

A type-θ utility under-reports if and only if its cost draw exceeds this cutoff, $c > c^*(\theta)$, so the share of utilities under-reporting and receiving an MR violation is

$$MR(m) = \int_0^{\bar{\theta}} \big[\, 1 - G(c^*(\theta);m)\,\big]\, f(\theta;m)\, d\theta \ \equiv\ \int_0^{\bar{\theta}} h(\theta,m)\, f(\theta;m)\, d\theta. \tag{9}$$

Differentiating (9) splits into two channels:

$$\frac{\partial MR}{\partial m} = \underbrace{\int_0^{\bar{\theta}} \frac{\partial h(\theta,m)}{\partial m}\, f(\theta;m)\, d\theta}_{\text{Channel A: cost-distribution shift}} + \underbrace{\int_0^{\bar{\theta}} h(\theta,m)\, \frac{\partial f(\theta;m)}{\partial m}\, d\theta}_{\text{Channel B: type-distribution shift}}. \tag{10}$$

Channel A:

$$\frac{\partial h(\theta,m)}{\partial m} = -\frac{\partial G(c^*(\theta);m)}{\partial m} \ge 0 \quad \text{for every } \theta,$$

since $\partial G(\cdot\,;m)/\partial m \le 0$ pointwise.

Channel A is therefore non-negative: holding the type composition fixed, a rightward shift in the self-reporting cost distribution pushes more mass of c above each type's un-

changed cutoff.

Channel B:

The maintained assumption signs $\partial F(\theta; m)/\partial m \leq 0$, but Channel B is written in terms of the *density* derivative $\partial f(\theta; m)/\partial m$, which has no assumed sign — a rightward shift in a cdf can raise the density in one part of the support and lower it in another. To use the assumption we actually have, rewrite Channel B in terms of F instead of f via integration by parts.

Define $\varphi(\theta; m) \equiv \partial F(\theta; m)/\partial m$. Since $f(\theta; m) = \partial F(\theta; m)/\partial \theta$, swapping the order of the two partial derivatives gives $\partial f(\theta; m)/\partial m = \partial \varphi(\theta; m)/\partial \theta$, so Channel B is

$$\int_0^{\bar{\theta}} h(\theta, m)\, \frac{\partial \varphi(\theta; m)}{\partial \theta}\, d\theta.$$

Integrating by parts (treating $[\partial \varphi(\theta; m)/\partial \theta]\, d\theta$ as $d\varphi$),

$$\int_0^{\bar{\theta}} h(\theta, m)\, \frac{\partial \varphi(\theta; m)}{\partial \theta}\, d\theta = \Big[\, h(\theta, m)\, \varphi(\theta; m) \,\Big]_0^{\bar{\theta}} - \int_0^{\bar{\theta}} \frac{\partial h(\theta, m)}{\partial \theta}\, \varphi(\theta; m)\, d\theta.$$

The boundary term vanishes: $\varphi(0; m) = \partial F(0; m)/\partial m = 0$ and $\varphi(\bar{\theta}; m) = \partial F(\bar{\theta}; m)/\partial m = 0$, since $F(0; m) = 0$ and $F(\bar{\theta}; m) = 1$ for every m (the cdf is pinned at the endpoints of its support regardless of m). Substituting $\varphi(\theta; m) = \partial F(\theta; m)/\partial m$ back in,

$$\int_0^{\bar{\theta}} h(\theta, m)\, \frac{\partial f(\theta; m)}{\partial m}\, d\theta = -\int_0^{\bar{\theta}} \frac{\partial h(\theta, m)}{\partial \theta}\, \frac{\partial F(\theta; m)}{\partial m}\, d\theta. \tag{11}$$

Signing (11) therefore requires the slope of h in θ. Differentiating (8) and applying the envelope theorem in θ, $\partial W(\rho; \theta)/\partial \theta = b(a(\rho; \theta))$,

$$c^{*\prime}(\theta) = b(a_{SR}(\theta)) - b(a_{MR}(\theta)) < 0,$$

since $a_{SR}(\theta) < a_{MR}(\theta)$ and $b' > 0$. Then

$$\frac{\partial h(\theta, m)}{\partial \theta} = -g(c^*(\theta); m)\, c^{*\prime}(\theta) \geq 0,$$

so h is non-decreasing in θ: higher-cost types choose more negligence, which lowers their own switching cutoff and makes them more likely to under-report.

$$\text{Channel B} = -\int_0^{\bar{\theta}} \underbrace{\frac{\partial h(\theta, m)}{\partial \theta}}_{\geq 0}\, \underbrace{\frac{\partial F(\theta; m)}{\partial m}}_{\leq 0}\, d\theta \;\geq\; 0.$$

Both channels are therefore non-negative, so $\partial MR/\partial m$ = Channel A + Channel B ≥ 0.

Contamination from mining can raise MR violations by increasing self-reporting costs relative to each type's fixed cutoff and by shifting the population toward higher-cost types who are already structurally closer to their own cutoff.

Proposition 3: Increasing all penalties increases the share of utilities self-reporting.

Consider scaling every sanction by a common factor $\lambda > 0$: $(r, s, t) \to \lambda(r, s, t)$, holding $q(\cdot)$, $b(\cdot)$, p, and the cost draws θ, c fixed. Costs become

$$\begin{aligned} \text{self-report:} \quad & c + q(a)\,\lambda r \\ \text{under-report (MR):} \quad & \lambda t + p\,[q(a)\,\lambda s] \end{aligned}$$

Differentiating the expected annual cost in a on each branch,

$$\begin{aligned} \frac{\partial e_\lambda(a;c)}{\partial a} &= \lambda r\, q'(a) = \lambda\, \frac{\partial e(a;c)}{\partial a} && \text{(self-reporting branch)} \\ \frac{\partial e_\lambda(a;c)}{\partial a} &= \lambda ps\, q'(a) = \lambda\, \frac{\partial e(a;c)}{\partial a} && \text{(under-reporting (MR) branch)} \end{aligned}$$

Negligence falls in λ.

$$\frac{\partial a}{\partial \lambda} = \frac{\rho\, q'(a)}{\theta b''(a) - \lambda\rho\, q''(a)}.$$

The second-order condition invoked in Proposition 1, $\lambda\rho\, q''(a) - \theta b''(a) \geq 0$, makes the denominator non-positive, so $\partial a/\partial\lambda \leq 0$: negligence is weakly decreasing in the penalty scale, within each branch.

The reporting rule scales by λ. The self-report condition with the scaled penalties, $c + \lambda r\, q(a) \leq \lambda[t + ps\, q(a)]$ rearranges to

$$c \leq \hat{c}_\lambda(a) \equiv \lambda[\, t - (r - ps)\, q(a)\,] = \lambda\, \hat{c}(a). \tag{12}$$

Unlike $\hat{c}_\lambda(a)$ itself, the self-report cost c does not scale with λ since it is a technology/labor cost, not a legal penalty, so scaling λ up moves the threshold $\hat{c}_\lambda(a)$ relative to a fixed distribution of c.

Scaling the sanctions replaces the marginal sanction pair (r, ps) with $(\lambda r, \lambda ps)$ and the under-reporting penalty t with λt, so the switching cost of (8) becomes

$$C^*(\lambda;\theta) = \lambda t - \int_{\lambda ps}^{\lambda r} q(a(u;\theta))\, du,$$

with derivative

$$\frac{\partial C^*(\lambda;\theta)}{\partial \lambda} = t - \Big[\, r\, q(a(\lambda r;\theta)) - ps\, q(a(\lambda ps;\theta))\Big] \;\geq\; t - (r-ps)\, q(\bar{a}) \;\geq\; 0.$$

The first inequality uses $a(\lambda r;\theta) \leq a(\lambda ps;\theta)$, so that $q(a(\lambda r;\theta)) \leq q(a(\lambda ps;\theta))$ and the bracketed term is at most $(r-ps)\, q(a(\lambda r;\theta)) \leq (r-ps)\, q(\bar{a})$. The second is the maintained assumption on t. Raising the penalty scale therefore raises the switching cost of every type, holding the population's cost draws fixed. Aggregating over types, the share of utilities that self-report,

$$SR(\lambda) = \int_0^{\bar{\theta}} G(C^*(\lambda;\theta); m)\, f(\theta; m)\, d\theta,$$

is non-decreasing in λ, since G is increasing in its first argument and $\partial C^*(\lambda;\theta)/\partial\lambda \geq 0$ for every θ. A higher penalty scale reduces negligence and increases self-reporting.

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Tables and Figures

Table 1: Inorganic chemical violations at utilities, 1985–2005

Panel A: Any violation in year

	MR		MCL	
Contaminant	**%**	**N**	**%**	**N**
Nitrates	5.68	612	0.11	12
Arsenic	3.73	402	0.05	5
Inorganic chemicals	4.31	465	0.30	32

Panel B: Days in year

	MR				MCL			
Contaminant	**Mean**	**SD**	**P90**	**P99**	**Mean**	**SD**	**P90**	**P99**
Nitrates	14.54	65.35	0.00	365.00	0.27	9.19	0.00	0.00
Arsenic	9.98	54.32	0.00	365.00	0.08	3.83	0.00	0.00
Inorganic chemicals	11.53	58.47	0.00	365.00	0.71	15.08	0.00	0.00

Notes: Sample of drinking water utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, 1985–2005. MR = monitoring and reporting violation; MCL = maximum contaminant level violation. Number of observations = Number of utilities $\times$ Number of years. N = 10,782 = 582 utilities $\times$ up to 21 years (1985–2005).

Table 2: Enforcement actions and site visits at utilities, 1985–2005

	Whole panel		During MR year		During MCL year	
	%	N	%	N	%	N
Panel A: Enforcement type						
Formal	3.00	323	9.41	70	6.12	3
Informal	18.24	1,965	66.67	496	59.18	29
Any	20.75	2,235	70.70	526	67.35	33
Panel B: Visit type						
Sanitary	13.59	1,464	13.17	98	10.20	5
Technical assistance	2.29	247	4.70	35	2.04	1
Enforcement	1.05	113	2.02	15	4.08	2
Sample collection	0.78	84	0.54	4	0.00	0
Inspection	3.43	369	5.65	42	2.04	1

Notes: Sample of drinking water utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, 1985–2005. MR = monitoring and reporting violation; MCL = maximum contaminant level violation. During MR year and During MCL year columns restrict to the 744 and 49 cells, respectively, with a nitrate, arsenic, or inorganic chemical violation of that category, before computing the same share and count. Panel A: Formal and Informal enforcement follow the EPA SDWIS enforcement-action classification; Any is a cell with an enforcement action of either category. Panel B: Sanitary visits are sanitary surveys and follow-up sanitary surveys; Technical assistance covers technical assistance, engineering, and operations and maintenance visits; Enforcement visits are formal-enforcement, investigation, and emergency assistance visits; Sample collection is a sample-collection visit; Inspection covers site, regularly scheduled, and informal system inspections. An enforcement action or visit type may co-occur with others in the same cell, so rows need not sum to the Any/whole-panel total. Number of observations = 10,773.

Table 3: Utility contaminant concentrations, 1998–2005

Variable	MCL	Mean	Max	Std. dev.	*N*	Near MCL (%)
Panel A: Full sample						
Arsenic (mg/L)	0.050 (pre-2006), 0.010 (2006+)	0.0028	0.011	0.0023	416	0.00
Nitrate (mg/L)	10	0.80	5.5	0.87	488	0.41
Barium (mg/L)	2.0	0.074	0.71	0.066	407	0.00
Selenium (mg/L)	0.050	0.0047	0.035	0.0049	405	0.49
Panel B: Utility-years with non-zero coal extraction						
Arsenic (mg/L)	0.050 (pre-2006), 0.010 (2006+)	0.0030	0.010	0.0024	93	0.00
Nitrate (mg/L)	10	0.73	4.0	0.67	118	0.00
Barium (mg/L)	2.0	0.076	0.21	0.048	91	0.00
Selenium (mg/L)	0.050	0.0044	0.035	0.0048	90	1.11

Notes: SYR2 sample from 1998–2005. "Near MCL" is the percent of utility-year mean concentrations exceeding 50% of the applicable MCL. Panel B restricts Panel A's sample to utility-year observations with non-zero annual coal extraction in upstream watersheds.

Table 4: MR and MCL violation rates and counts by SYR2 contaminant reporting status, two-step upstream watershed linkage, 1985–2005

	Utility appears in SYR2 (%)			
	Yes (1)	No (2)	Diff. (3)	*p*-value (4)
Ever MR violation	51.27	44.08	7.19*	0.09
Ever MCL violation	5.51	3.55	1.96	0.28
Mean annual violations (count, 0–6)	0.13	0.20	-0.07**	0.01

Notes: Sample restricted to utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake. *Has SYR2 reading*: at least one Six-Year Review contaminant reading for arsenic, nitrate, selenium, or barium. *No SYR2 reading*: utility is in a state where at least one utility has a SYR2 reading but the utility itself does not. MR violation: inorganic chemical monitoring and reporting violation. MCL violation: inorganic chemical maximum contaminant violation. Mean annual violations: sum of MR and MCL violation indicators across arsenic, nitrate, and inorganic chemicals categories (maximum of 6 per utility-year). *N* utilities: group 1 = 236, group 2 = 338. The first two rows are percentages of utilities and their differences are in percentage points. Stars on differences are from two-sample *t*-tests. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 5: Balance test of utility characteristics and upstream coal production 1998–2005

	Annual upstream coal prod. (1M ST)		Any upstream coal mining	
	(1)	(2)	(3)	(4)
Constant	0.31		-0.16	
	(0.32)		(0.12)	
Log backcast pop. 1997	0.14	0.19	0.02	0.02
	(0.09)	(0.12)	(0.01)	(0.01)
Log pop. served (SYR2)	-0.12	-0.14	0.01	-0.03
	(0.08)	(0.12)	(0.03)	(0.03)
Number of intake facilities	0.01	-0.04	0.07*	0.07*
	(0.07)	(0.09)	(0.04)	(0.04)
Surface water source	0.15	-0.49	0.12	0.05
	(0.21)	(0.41)	(0.13)	(0.16)
Public ownership	-0.19	-0.07	0.21**	0.10
	(0.32)	(0.28)	(0.09)	(0.11)
Wholesaler	-0.47*	-0.93	-0.22	-0.22
	(0.26)	(1.14)	(0.13)	(0.17)
Source water protection	-0.57	-0.55	-0.28*	-0.15
	(0.34)	(0.54)	(0.15)	(0.19)
State fixed effects		✓		✓
Observations	122	120	122	120
Joint F-test (all covariates)	2.33	0.96	8.96	2.46
p-value	0.03	0.46	$<$0.01	0.02

Notes: Covariates differ in timing, and only population pre-dates the dose window. Backcast population served in 1997 is constructed from decennial census geography and interpolated between the 1990 and 2000 census anchors; it is therefore dated before 1998 by construction but is not an observed 1997 measurement. The remaining covariates (population served, number of intake facilities, number of source HUC12s, primary source type, ownership, wholesaler status, and source water protection) are drawn from the SDWIS/SYR2 inventory and are recorded contemporaneously with the dose window. Heteroskedasticity-robust standard errors. Sample: utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, 1998–2005. *** p$<$0.01, ** p$<$0.05, * p$<$0.1.

Table 6: Effect of annual upstream coal production on inorganic chemicals, SYR2 1998–2005

	Arsenic (1)	Nitrate (2)	Barium (3)	Selenium (4)
Panel A: Utilities with a coal mine one watershed upstream				
Upstream coal prod. (1M ST)	0.0034***	0.075*	0.0088	0.0018
	(0.0010)	(0.045)	(0.0081)	(0.0012)
Observations	334	432	322	319
Panel B: Utilities with a coal mine within two watersheds upstream				
Upstream coal prod. (1M ST)	0.00038	0.061***	0.014	0.00037
	(0.00028)	(0.015)	(0.012)	(0.00039)
Observations	366	472	353	350

Notes: Within each chemical, the column shows mean measured concentration from the EPA 6-Year Review. Non-detect values replaced by MDL/$\sqrt{2}$ following Ravalli et al. (2022). Explanatory variable is coal production during the year (in millions of short tons) in watersheds upstream of the utility's intake. Panel A: community water systems with a coal mine one watershed upstream and no coal mine colocated with their intake, with production in that upstream watershed. Panel B: community water systems with a coal mine within two watersheds upstream and no coal mine colocated with their intake, with production summed across those watersheds. Standard errors clustered at the utility level. All specifications include utility and HUC02 $\times$ year fixed effects. *** p<0.01, ** p<0.05, * p<0.1.

Table 7: First stage: effect of the instrument on the number of upstream coal mines, 1985–2005

	Upstream coal mines (sum)
Post-1995 × Upstream sulfur %	-0.49***
	(0.07)
First-stage F-statistic	49.20

Notes: The dependent variable is the number of coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. Standard errors clustered at the utility level. All specifications include utility and state-by-year fixed effects. Number of observations: 10,641; number of utilities: 565. *** p<0.01, ** p<0.05, * p<0.1.

Table 8: Effect of instrument on utility characteristics

	Number of intake facilities	
	(1)	(2)
Upstream sulfur %		0.99***
		(0.38)
Post-1995 × Upstream sulfur %	0.05	0.06
	(0.04)	(0.04)
Utility fixed effects	✓	
Year fixed effects		✓
State × year fixed effects	✓	
Balanced panel		✓
Utilities	565	447
Observations	10,641	9,387

Notes: The dependent variable is the number of active intake facilities operated by the utility in that year. The sample is utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, in states with at least one other such utility. Standard errors clustered at the utility level. Sample period 1985–2005. *** p<0.01, ** p<0.05, * p<0.1.

Table 9: Effect of coal mines on inorganic chemical violations at utilities

	Any violation					
	Nitrates		Arsenic		Inorganic chemicals	
	(1)	(2)	(3)	(4)	(5)	(6)
OLS						
Upstream coal mines (sum)	0.67**	0.54	0.60*	0.43	0.56*	0.28
	(0.33)	(0.34)	(0.31)	(0.34)	(0.31)	(0.33)
2SLS						
Upstream coal mines (sum)	5.06***	3.89**	4.94***	4.00**	4.56***	3.09*
	(1.70)	(1.75)	(1.57)	(1.56)	(1.64)	(1.67)
RF						
Post-1995 × Upstream sulfur %	-2.09***	-1.92**	-2.04***	-1.97***	-1.89***	-1.53*
	(0.66)	(0.83)	(0.60)	(0.73)	(0.64)	(0.79)
Utility fixed effects	✓	✓	✓	✓	✓	✓
Year fixed effects	✓		✓		✓	
State × year fixed effects		✓		✓		✓
First-stage F-statistic	38.73	49.20	38.73	49.20	38.73	49.20

Notes: Dependent variable equals 1 if the utility had a violation of that type during the year, 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. Standard errors clustered at the utility level. Sample period 1985–2005. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 10: Effect of coal mines on inorganic chemical violations at utilities

	Monitoring and reporting (MR) violation					
	Nitrates		Arsenic		Inorganic chemicals	
	(1)	(2)	(3)	(4)	(5)	(6)
OLS						
Upstream coal mines (sum)	0.68**	0.55	0.62**	0.42	0.49	0.19
	(0.33)	(0.34)	(0.31)	(0.33)	(0.32)	(0.34)
2SLS						
Upstream coal mines (sum)	5.12***	3.94**	4.85***	3.78**	4.66***	3.06*
	(1.70)	(1.75)	(1.57)	(1.55)	(1.62)	(1.66)
RF						
Post-1995 × Upstream sulfur %	-2.12***	-1.95**	-2.01***	-1.87**	-1.93***	-1.51*
	(0.66)	(0.83)	(0.60)	(0.73)	(0.63)	(0.79)
Utility fixed effects	✓	✓	✓	✓	✓	✓
Year fixed effects	✓		✓		✓	
State × year fixed effects		✓		✓		✓
First-stage F-statistic	38.73	49.20	38.73	49.20	38.73	49.20

Notes: Dependent variable equals 1 if the utility had a violation of that type during the year, 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. Standard errors clustered at the utility level. Sample period 1985–2005. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 11: Effect of coal mines on inorganic chemical violations at utilities

	Maximum contaminant level (MCL) violation					
	Nitrates		Arsenic		Inorganic chemicals	
	(1)	(2)	(3)	(4)	(5)	(6)
OLS						
Upstream coal mines (sum)	-0.01	-0.00	-0.02	0.01	0.05	0.05
	(0.01)	(0.02)	(0.04)	(0.04)	(0.07)	(0.07)
2SLS						
Upstream coal mines (sum)	-0.09	-0.11	0.08*	0.22**	-0.16	-0.20
	(0.07)	(0.17)	(0.04)	(0.10)	(0.28)	(0.26)
RF						
Post-1995 × Upstream sulfur %	0.04	0.05	-0.03**	-0.11**	0.07	0.10
	(0.03)	(0.09)	(0.02)	(0.05)	(0.11)	(0.13)
Utility fixed effects	✓	✓	✓	✓	✓	✓
Year fixed effects	✓		✓		✓	
State × year fixed effects		✓		✓		✓
First-stage F-statistic	38.73	49.20	38.73	49.20	38.73	49.20

Notes: Dependent variable equals 1 if the utility had a violation of that type during the year, 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. Standard errors clustered at the utility level. Sample period 1985–2005. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 12: Effect of coal mining on regulator visit probability by visit type

	Sanitary	Technical assistance	Enforcement	Sample collection	Inspection
	(1)	(2)	(3)	(4)	(5)
OLS					
Upstream coal mines (sum)	0.28	0.10	0.04	-0.07	0.06
	(0.29)	(0.20)	(0.11)	(0.05)	(0.13)
2SLS					
Upstream coal mines (sum)	0.78	0.67	1.07	0.48	2.13**
	(1.20)	(0.95)	(0.81)	(0.50)	(1.07)
RF					
Post-1995 × Upstream sulfur %	-0.39	-0.33	-0.53	-0.24	-1.05**
	(0.59)	(0.47)	(0.39)	(0.24)	(0.49)
First-stage F-statistic	49.20	49.20	49.20	49.20	49.20

Notes: Dependent variable equals 1 if the utility received a regulator visit of that type during the year, 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. Standard errors clustered at the utility level. Sample period 1985–2005. All specifications include utility and state-by-year fixed effects. Number of observations: 10,641; number of utilities: 565. *** p<0.01, ** p<0.05, * p<0.1.

Table 13: Effect of coal mining on enforcement actions by type

	Enforcement					
	Informal		Formal		None	
	(1)	(2)	(3)	(4)	(5)	(6)
OLS						
Upstream coal mines (sum)	-0.15	-0.06	-1.00***	-0.12	0.33	-0.07
	(0.42)	(0.44)	(0.21)	(0.19)	(0.45)	(0.48)
2SLS						
Upstream coal mines (sum)	-3.06	-0.71	-3.37***	-1.08	2.37	-0.42
	(2.15)	(2.10)	(0.95)	(0.86)	(2.11)	(2.25)
RF						
Post-1995 × Upstream sulfur %	1.26	0.35	1.39***	0.53	-0.98	0.21
	(0.84)	(1.03)	(0.40)	(0.41)	(0.85)	(1.11)
Utility fixed effects	✓	✓	✓	✓	✓	✓
Year fixed effects	✓		✓		✓	
State × year fixed effects		✓		✓		✓
First-stage F-statistic	38.73	49.20	38.73	49.20	38.73	49.20

Notes: Dependent variable equals 1 if the utility had an enforcement action of that type during the year ("None" equals 1 if it had no enforcement action), 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. Standard errors clustered at the utility level. Sample period 1985–2005. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 14: Nitrate MR violations following a reading above 50% of the MCL

	Nitrate MR (1-yr)	Nitrate MR (6-mon)
Concen. $>$ 50% MCL	58.93**	26.07**
	(24.55)	(10.51)
Mean concen. (z-score)	1.29	0.08
	(1.46)	(0.91)

Notes: SYR2 sample restricted to utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake (1998–2005), nitrate only. Outcome: nitrate MR (monitoring/reporting) violation in the 365 days following the contaminant concentration sample date for the 1-yr column; violation in the 182 days following the contaminant concentration sample date for the 6-mon column. Concen. $>$ 50% MCL = reading at 50–100% of the MCL (5 mg/L), which triggers quarterly rather than the baseline annual nitrate testing. Mean concentration = utility-year mean reading, z-scored within chemical. Coefficients and standard errors are in percentage points. All specifications include utility and year fixed effects. Number of observations: 835; number of utilities: 82. Standard errors clustered at the utility level. *** p$<$0.01, ** p$<$0.05, * p$<$0.1.



Figure 1: Hierarchical structure of USGS hydrologic unit codes. Illustrates how a hydrologic region is nested into progressively smaller watershed units, from two-digit units covering large multi-state regions down to twelve-digit units covering a few square miles. Each smaller unit is fully contained within the boundaries of the larger unit above it.

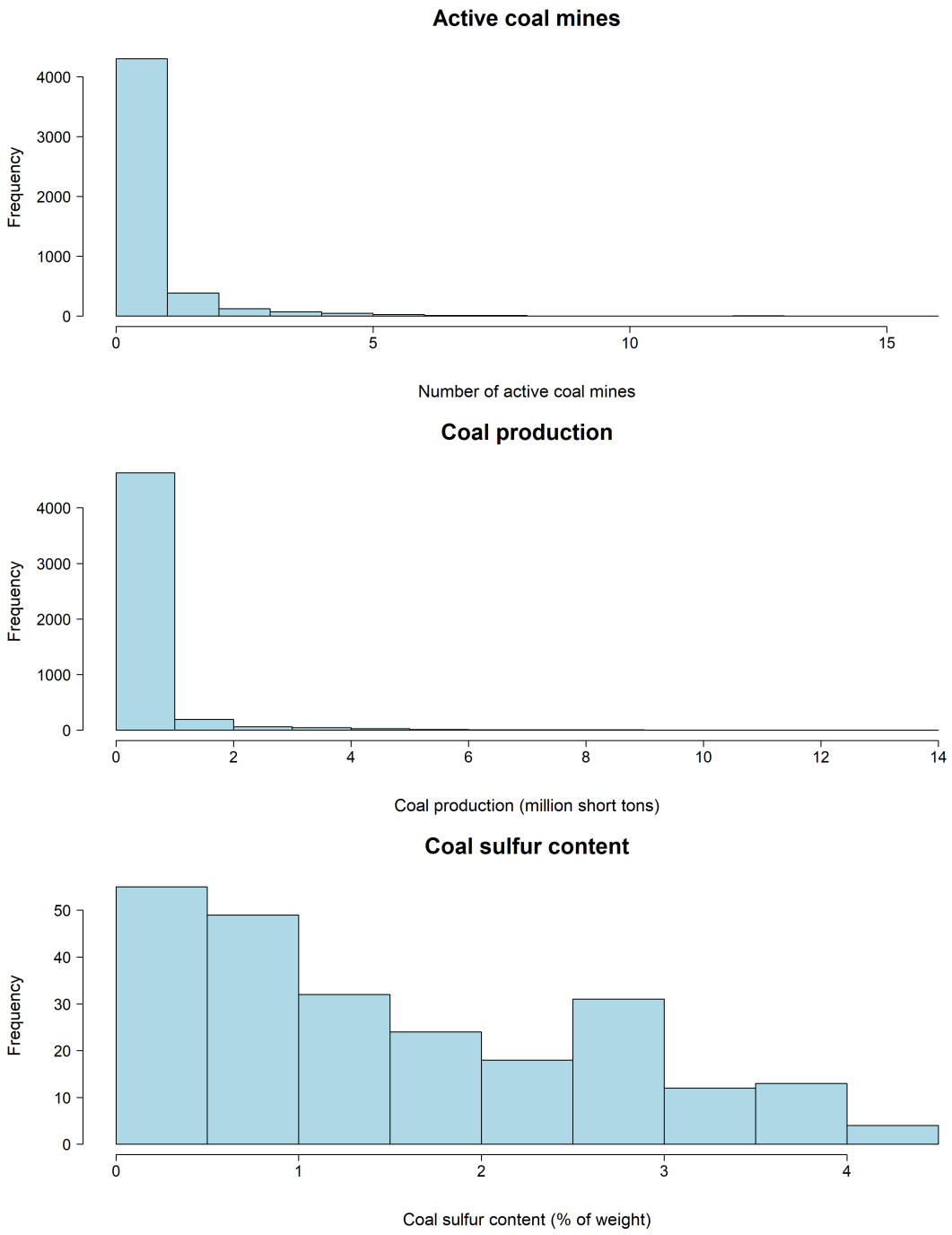


Figure 2: Histogram of the percentage of sulfur in coal weight in HUC12 watersheds within two HUC12s upstream of a water utility intake. The top two panels show the number of active coal mines and annual coal production in millions of short tons, with one observation per watershed-year. The bottom panel shows coal sulfur content, with one observation per watershed.

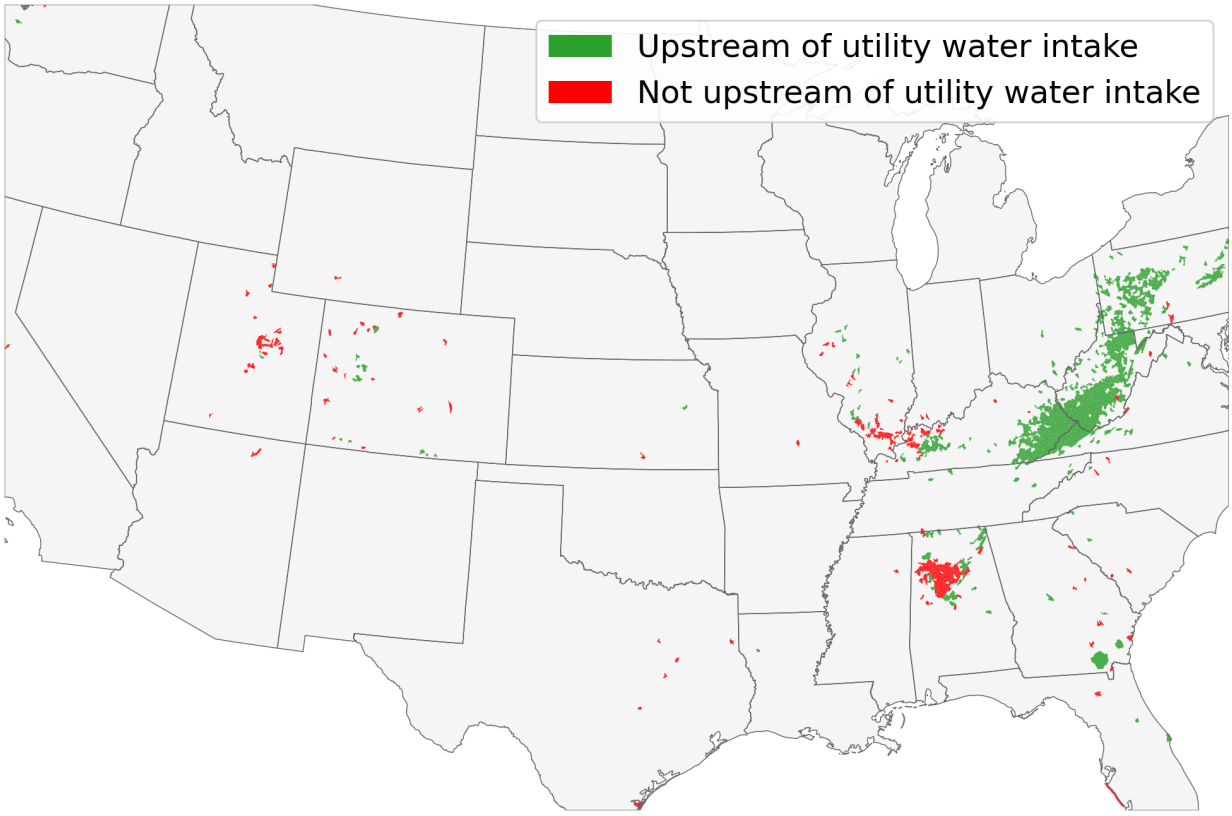


Figure 3: Shading distinguishes HUC12 watersheds that lie directly upstream of a water utility intake and contain a coal mine from HUC12 watersheds containing a coal mine with no water utility located downstream.

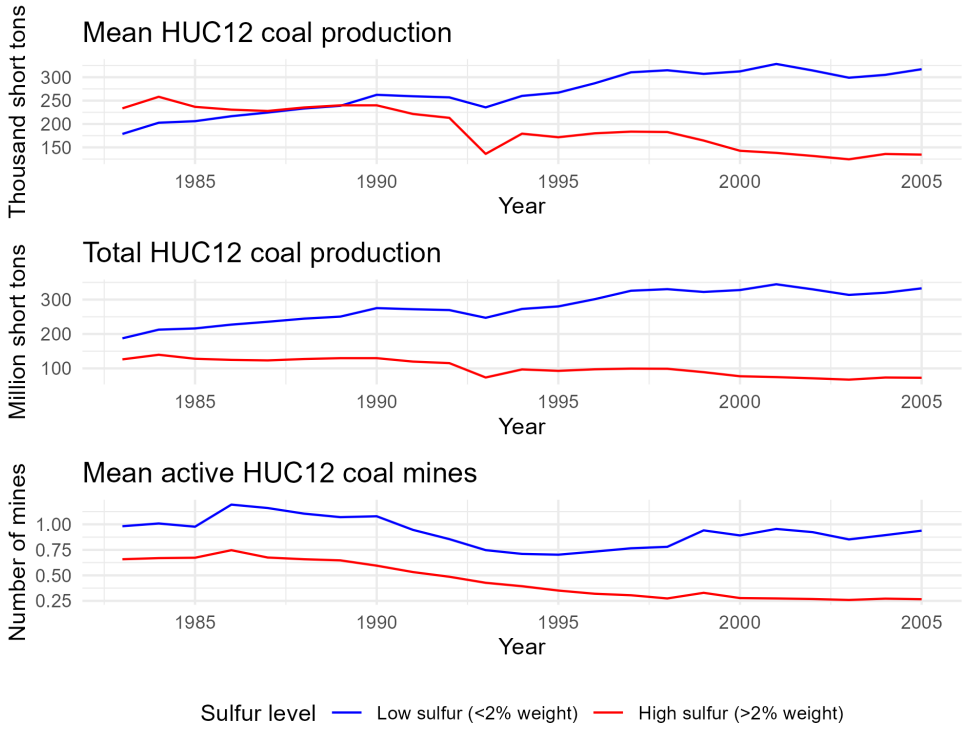


Figure 4: Coal production trends by HUC12 watershed sulfur content, 1983 to 2005.

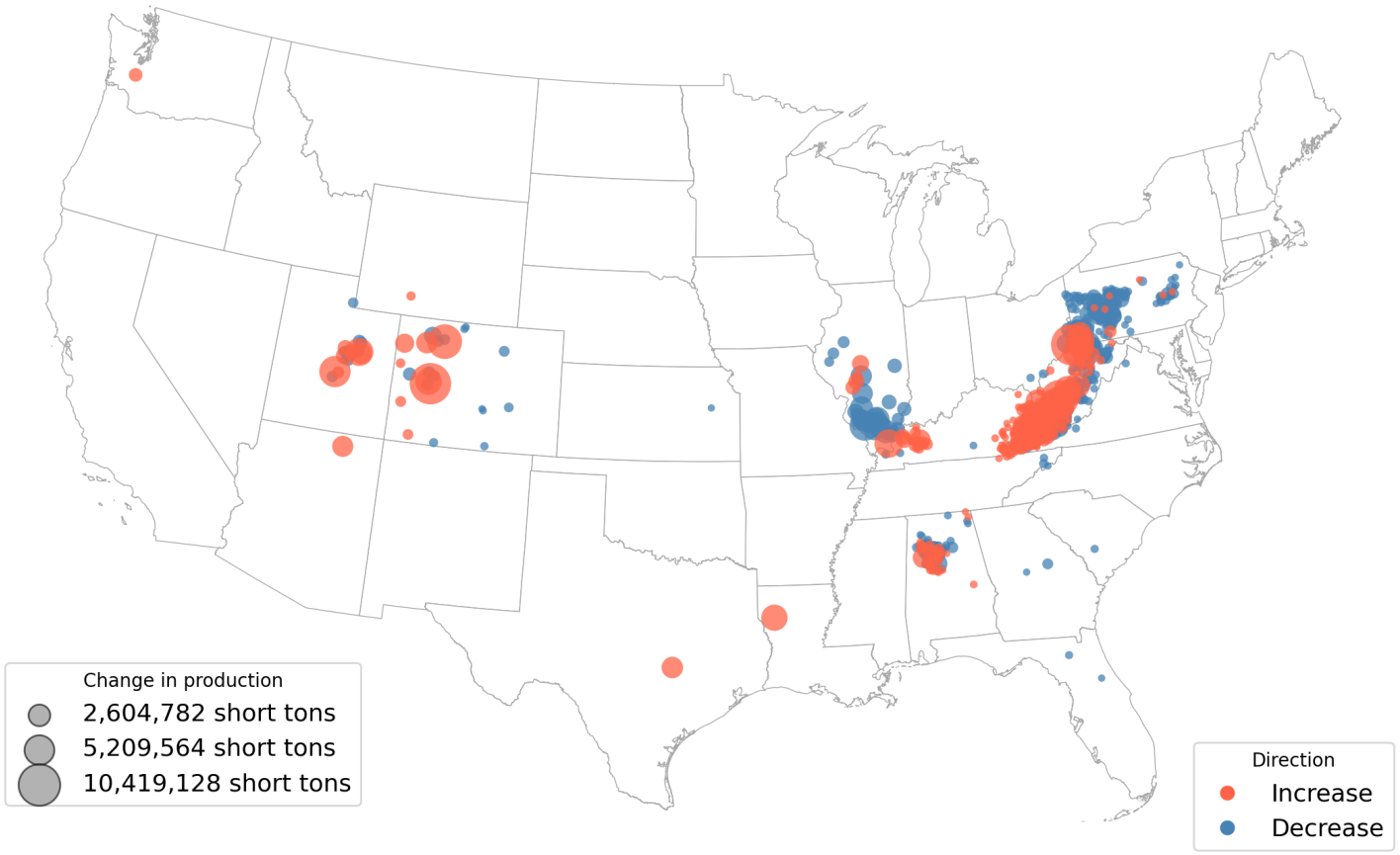


Figure 5: Change in coal production by watershed, 1985 to 2005. Circles are centered on watersheds with at least one active coal mine between 1985 and 2005 and are sized in proportion to the change in total coal production over the period. Red circles indicate an increase in production and blue circles indicate a decrease.

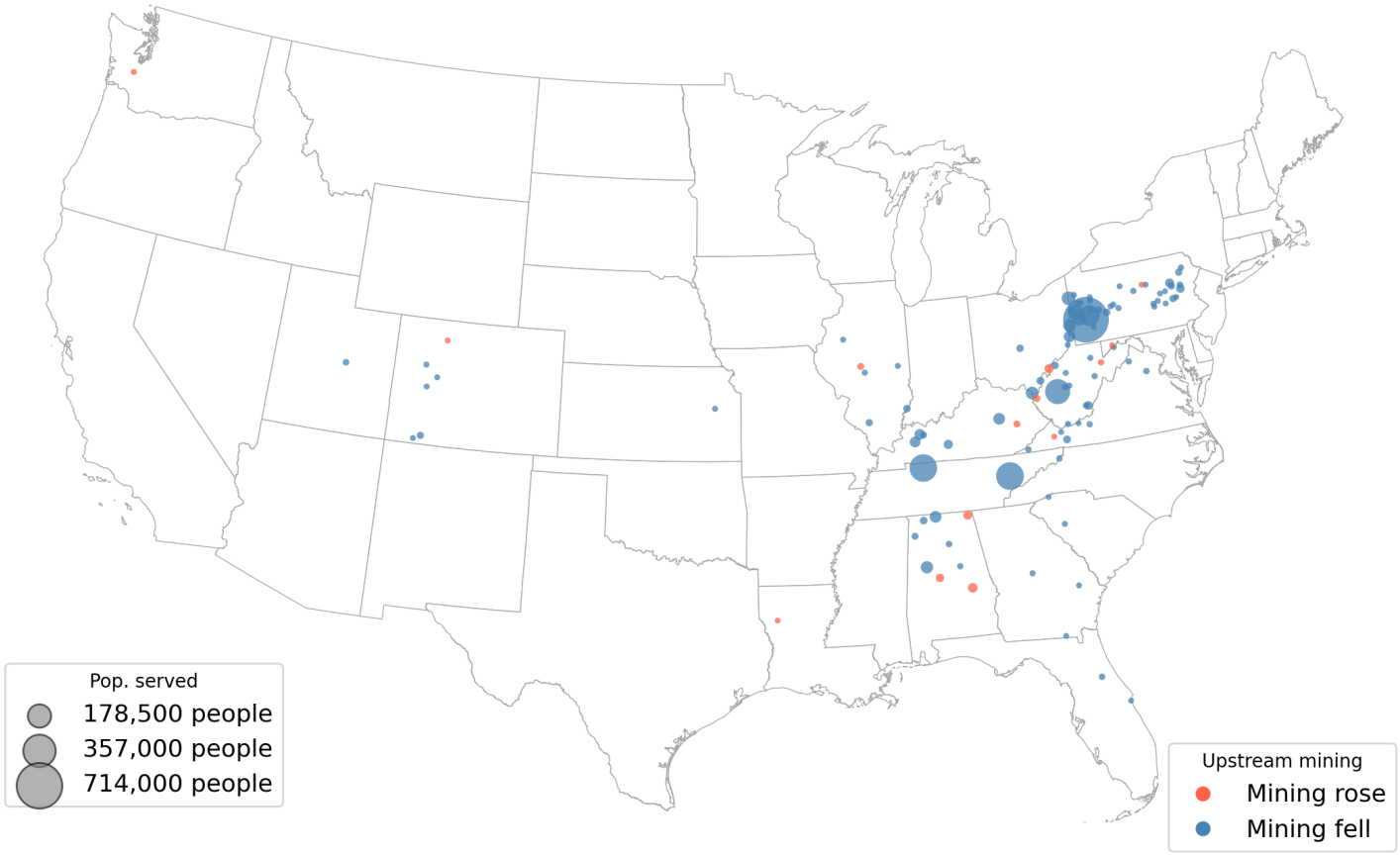


Figure 6: Change in upstream coal production weighted by downstream population. Circles are centered on coal-mining watersheds located directly upstream of a water utility intake and are sized in proportion to the population served by the downstream utility. Red circles indicate an increase in production and blue circles indicate a decrease. Watersheds with no water utility directly downstream are omitted. The total population one watershed downstream of an active coal mine was 1,257,836 in 1985 and 218,874 in 2005, a net decrease of 1,038,962.

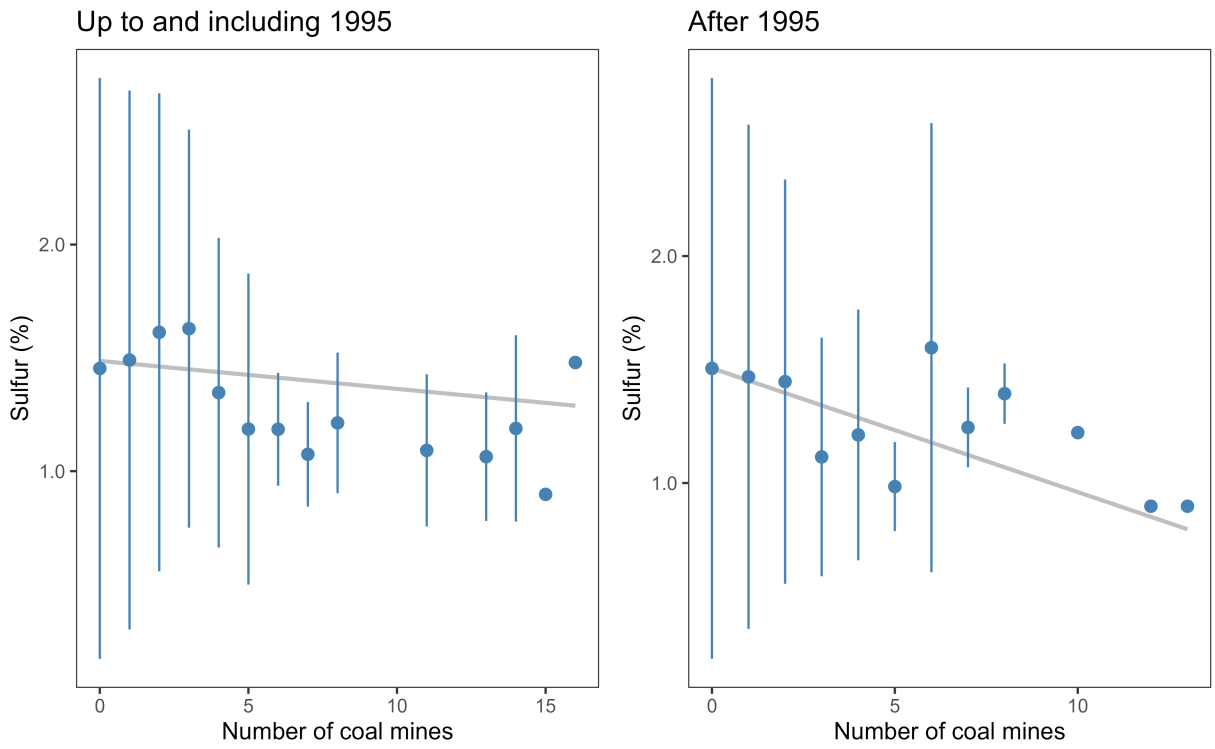


Figure 7: Coal mines and coal sulfur content, before and after 1995. Mean coal sulfur content by number of coal mines in a watershed. Each point is the mean across watershed-year observations with that number of mines; vertical lines show plus or minus one standard deviation; the line is a linear fit of sulfur content on the number of mines, estimated separately for the periods before and after 1995.
Notes: Sample: HUC12 watersheds within two flow steps upstream of a utility water intake, 1985–2005. Points show the mean sulfur as a percent of coal weight within each coal-mine-count bin; ranges show ± 1 standard deviation within bin.

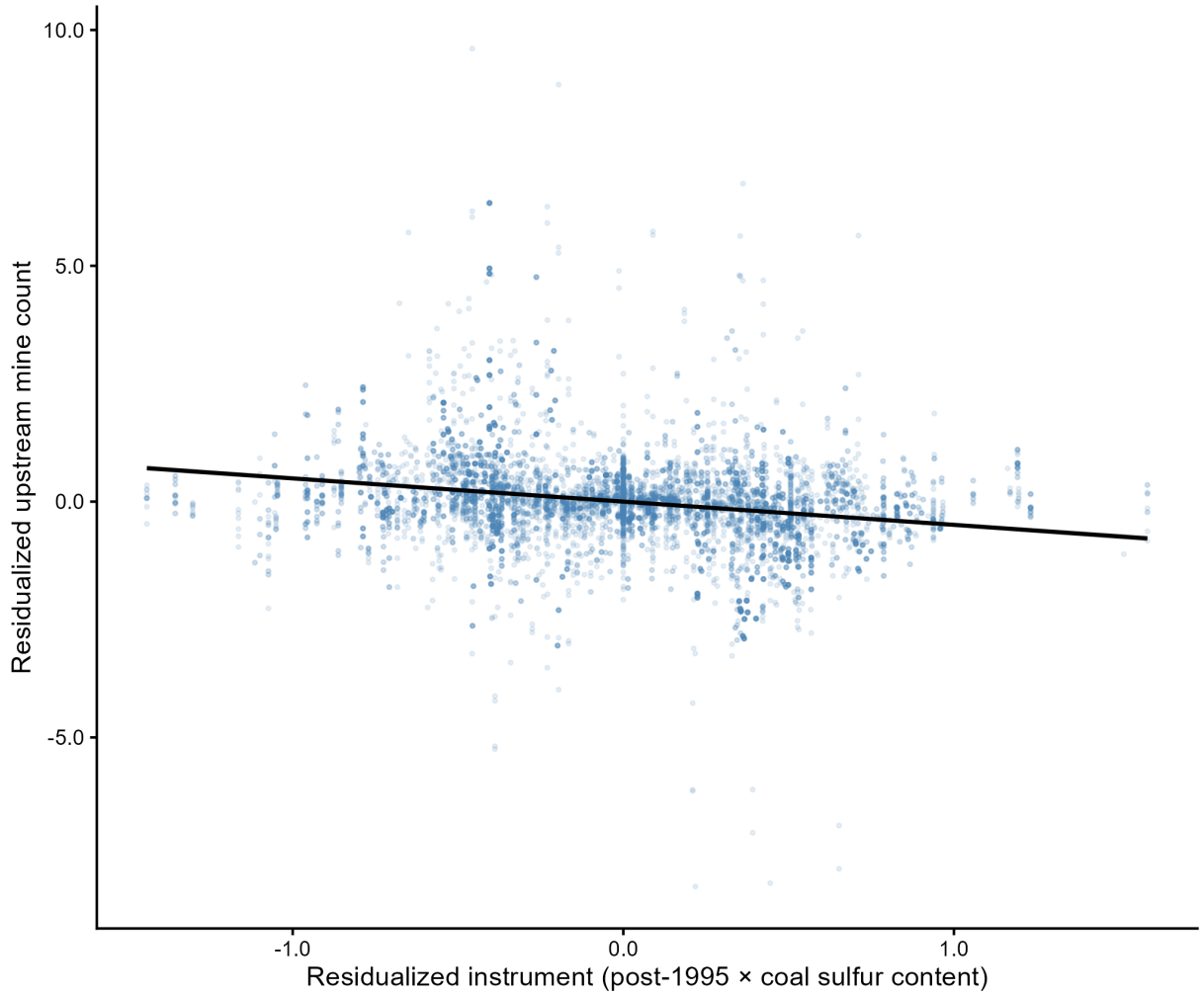


Figure 8: Residualized first-stage relationship. Each point is a utility by year observation for utilities with a coal mine within two watersheds upstream of their intake, 1985 to 2005. Both axes show residuals from separate regressions of each variable on utility, year, and state-by-year fixed effects, retaining only within-utility variation over time. The vertical axis residualizes the number of coal mines upstream within two watersheds; the horizontal axis residualizes the instrument, the post-1995 indicator interacted with the sulfur content of upstream coal. By the Frisch-Waugh-Lovell theorem, the slope of the fitted line equals the first-stage coefficient from the two-stage least squares specification.

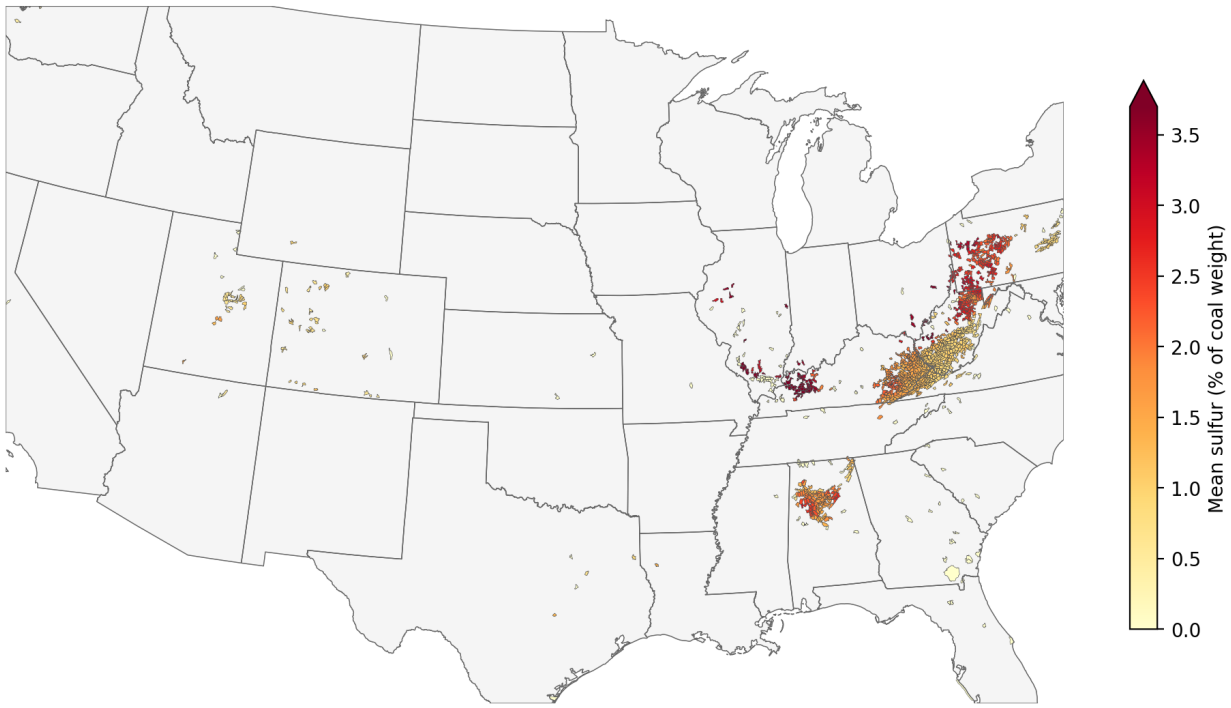


Figure 9: Shading indicates the mean sulfur content of coal, as a percentage of coal weight, for HUC12 watersheds containing an active coal mine. Values are capped at the 95th percentile; watersheds above this threshold appear in the darkest shade, marked by the arrow on the color scale.

Coal mines two and three watersheds upstream

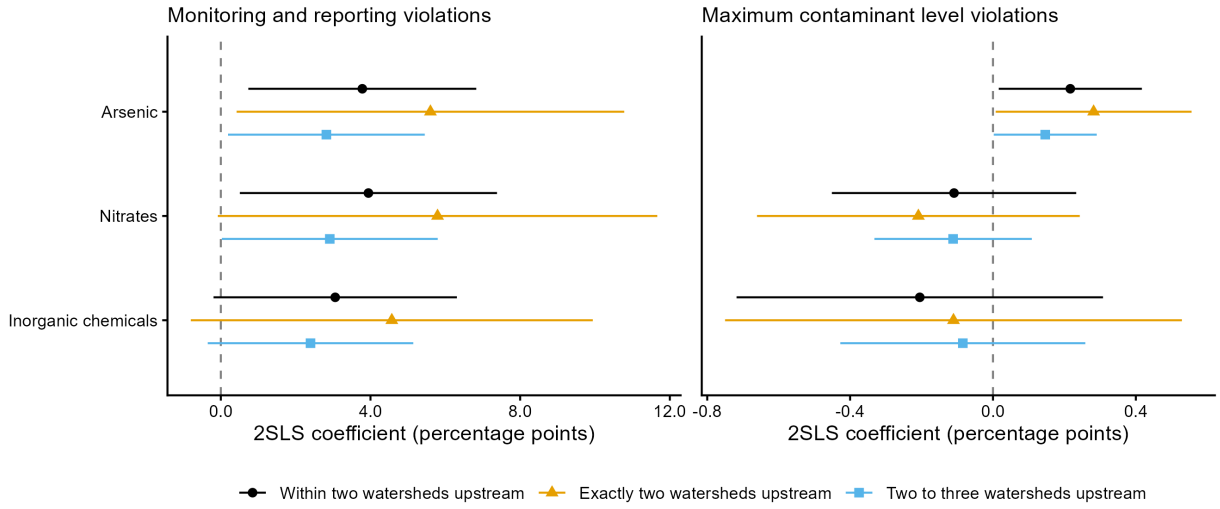


Figure 10: Effect of coal mines on inorganic chemical violations, by distance of the mines upstream

Notes: All three estimates use the same sample, utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, 1985–2005. Black: active coal mines within two watersheds upstream. Orange: active coal mines in watersheds exactly two watersheds upstream. Blue: active coal mines in watersheds two or three watersheds upstream. Utilities with no mine in those watersheds have zero. Each estimate is two-stage least squares, instrumenting with the post-1995 indicator interacted with the average coal sulfur content of the same set of watersheds, with utility and state-by-year fixed effects. The dependent variable equals 1 if the violation occurred during the year, and coefficients are in percentage points. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

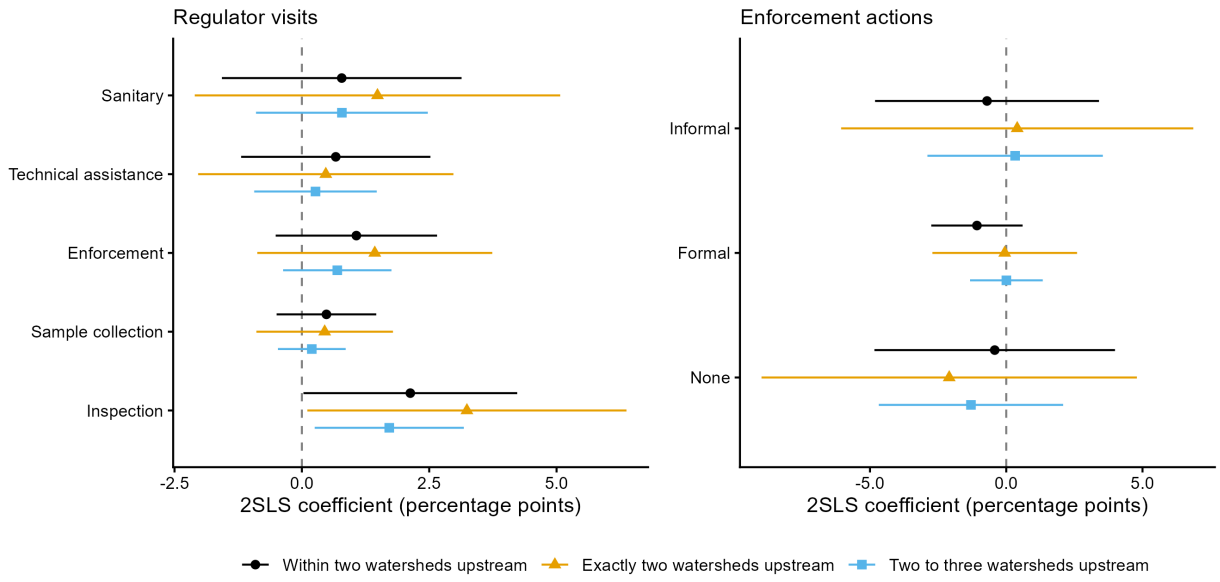


Figure 11: Effect of coal mines on regulator visits and enforcement actions, by distance of the mines upstream

Notes: All three estimates use the same sample, utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, 1985–2005. Black: active coal mines within two watersheds upstream. Orange: active coal mines in watersheds exactly two watersheds upstream. Blue: active coal mines in watersheds two or three watersheds upstream. Utilities with no mine in those watersheds have zero. Each estimate is two-stage least squares, instrumenting with the post-1995 indicator interacted with the average coal sulfur content of the same set of watersheds, with utility and state-by-year fixed effects. The dependent variable equals 1 if the visit or enforcement action occurred during the year, and coefficients are in percentage points. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

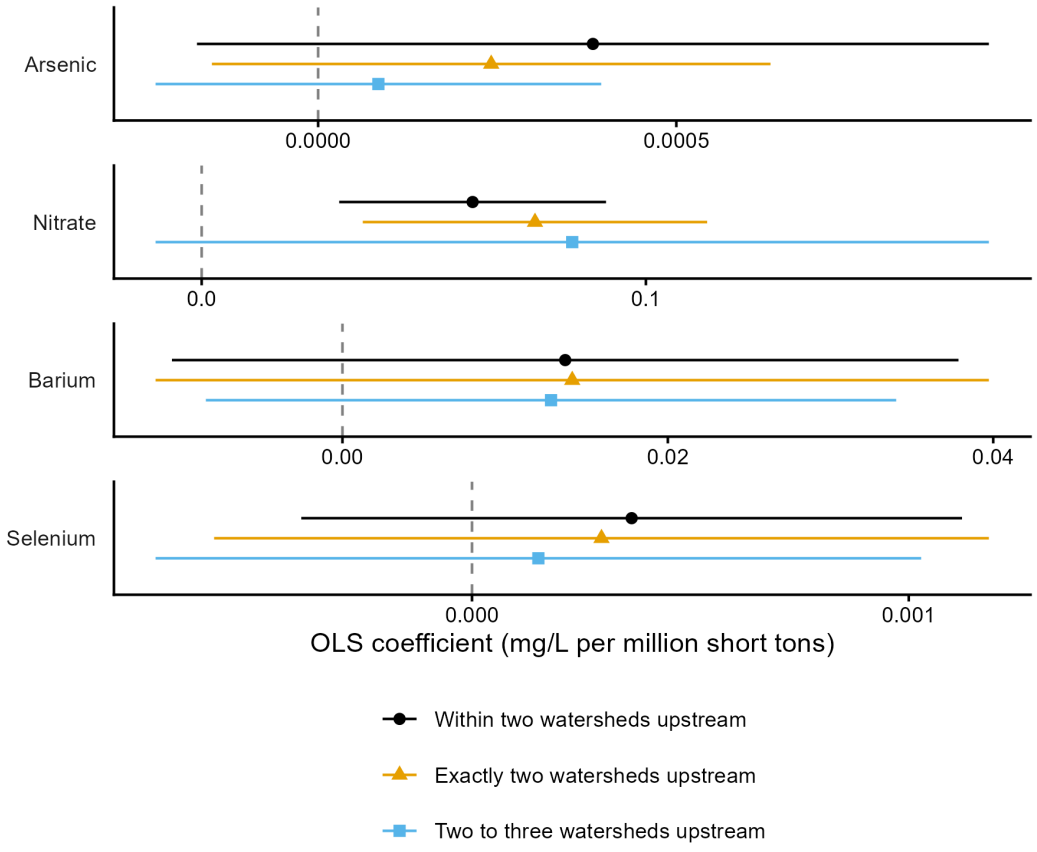


Figure 12: Effect of coal production on measured contaminant concentrations, by distance of the mines upstream

Notes: Estimates use utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it. Black: coal production within two watersheds upstream. Orange: production in watersheds exactly two watersheds upstream. Blue: production in watersheds two or three watersheds upstream. Each estimate is ordinary least squares of the mean measured concentration from the Six-Year Review (1998–2005) on annual coal production in millions of short tons in those watersheds, with utility and region-by-year fixed effects. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

Upstream coal mines versus upstream coal production

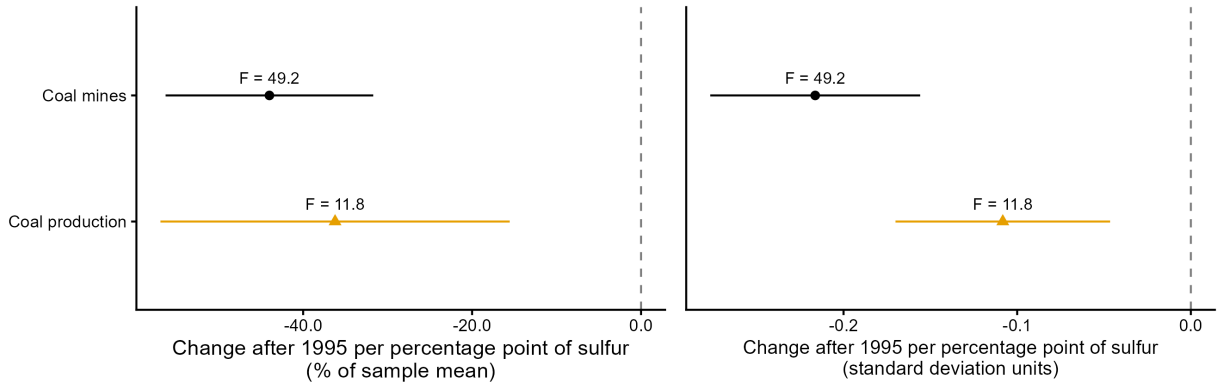


Figure 13: Effect of the post-1995 sulfur instrument on upstream coal mines and upstream coal production

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. Coal mines and coal production are the number of active mines and annual coal production in millions of short tons, summed over watersheds within two watersheds upstream. The explanatory variable is the post-1995 indicator interacted with the average coal sulfur content of the same watersheds, with utility and state-by-year fixed effects. The left panel divides the coefficient by the sample mean of the dependent variable, and the right panel divides it by the dependent variable's standard deviation. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

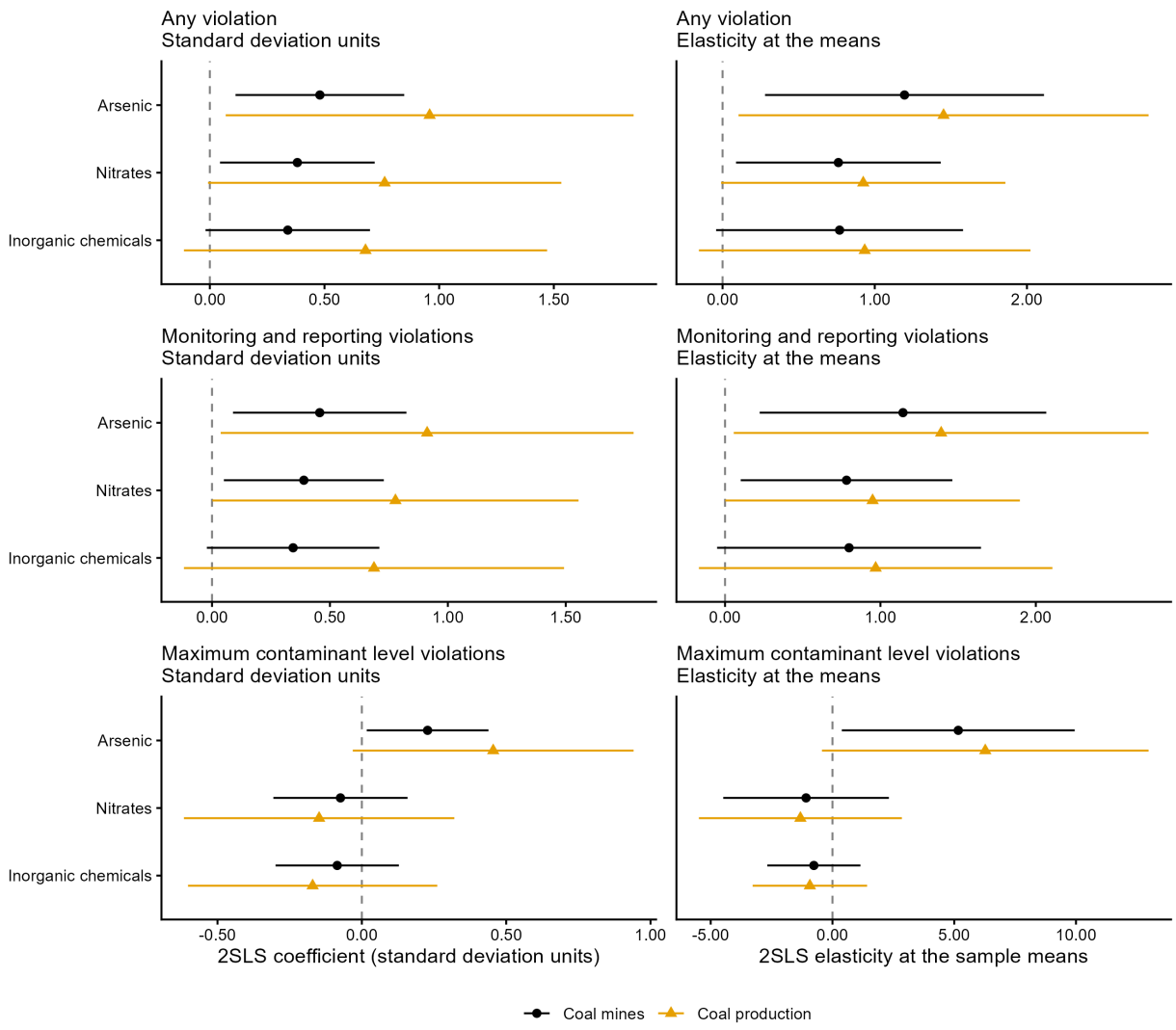


Figure 14: Effect of upstream coal mines and upstream coal production on inorganic chemical violations

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. Each estimate is two-stage least squares, instrumenting the regressor, either the number of active coal mines or annual coal production, summed over watersheds within two watersheds upstream, with the post-1995 indicator interacted with the average coal sulfur content of the same watersheds, with utility and state-by-year fixed effects. The dependent variable equals 1 if the violation occurred during the year. In the left panels the dependent variable and the regressor are each in standard deviation units. In the right panels each is divided by its sample mean, so coefficients are elasticities evaluated at the sample means. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

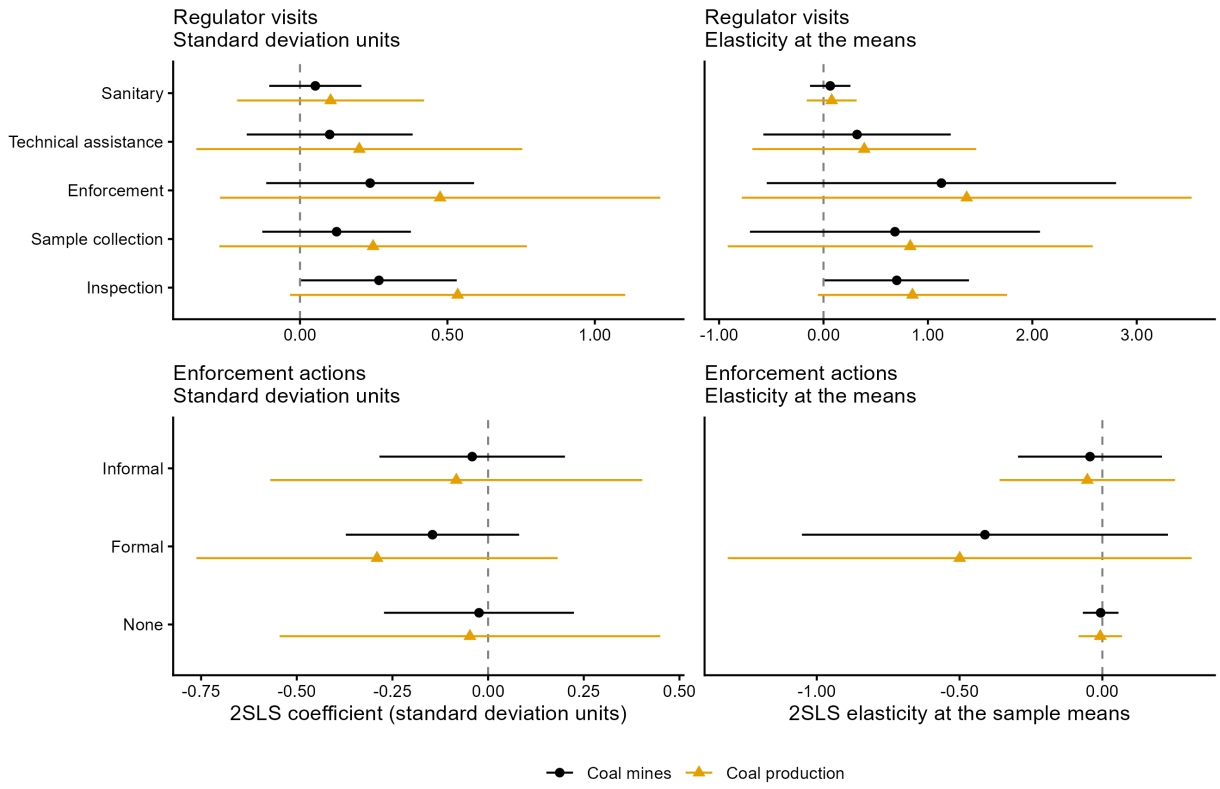


Figure 15: Effect of upstream coal mines and upstream coal production on regulator visits and enforcement actions

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. Each estimate is two-stage least squares, instrumenting the regressor, either the number of active coal mines or annual coal production, summed over watersheds within two watersheds upstream, with the post-1995 indicator interacted with the average coal sulfur content of the same watersheds, with utility and state-by-year fixed effects. The dependent variable equals 1 if the visit or enforcement action occurred during the year, and for the no-enforcement outcome it equals 1 if the utility had no enforcement action during the year. In the left panels the dependent variable and the regressor are each in standard deviation units. In the right panels each is divided by its sample mean, so coefficients are elasticities evaluated at the sample means. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

High vs low sulfur instrument trend analysis

Table 15: Event-study pre-trends: high- versus low-sulfur utilities

	Pre-1995 joint F	Pre-1995 p-value	1985–1992 p-value	Pre-period slope	Post − pre mean coefficient	Observations
Panel A: Upstream coal mines (first stage)						
Upstream coal mines	11.00	<0.01	<0.01	-0.14***	-1.34***	10,641
				(0.02)	(0.17)	
Panel B: Monitoring and reporting (MR) violation						
Nitrates	3.75	<0.01	<0.01	-0.52	-4.19**	10,641
				(0.39)	(1.87)	
Arsenic	2.78	<0.01	<0.01	-0.06	-4.20**	10,641
				(0.36)	(1.67)	
Inorganic chemicals	2.78	<0.01	<0.01	-0.27	-3.43*	10,641
				(0.38)	(1.75)	
Panel C: Regulator visit						
Sanitary	5.57	<0.01	<0.01	-0.30	-1.89	10,641
				(0.28)	(1.32)	
Inspection	0.90	0.53	0.61	0.22	-1.55*	10,641
				(0.18)	(0.94)	
Enforcement	1.20	0.29	0.21	0.08	-1.13	10,641
				(0.18)	(0.72)	
Technical assistance	1.30	0.23	0.18	0.38**	-0.69	10,641
				(0.16)	(1.06)	
Sample collection	0.70	0.71	0.62	-0.15	-0.55	10,641
				(0.10)	(0.47)	
Panel D: Enforcement action						
Informal	3.56	<0.01	<0.01	-0.54	-0.49	10,641
				(0.49)	(2.33)	
Formal	0.61	0.77	0.82	0.03	1.09	10,641
				(0.14)	(1.04)	

Notes: Each regression interacts an indicator for a utility whose average coal sulfur content in watersheds within two flow steps upstream of its intake is at least 1.5 percent, interacted with year indicators; 1994 is the omitted year, and each regression controls for the number of intake facilities. Outcomes equal 100 if the utility had a violation, regulator visit, or enforcement action of that type during the year and 0 otherwise, so coefficients are in percentage points, except for upstream coal mines, which are in mines. Coefficients are the high-sulfur minus low-sulfur difference. The pre-1995 joint F-statistic and p-value test that the 1985–1993 coefficients are jointly zero, and the 1985–1992 p-value drops 1993. The pre-period slope is the linear trend in the 1985–1994 coefficients per year, with 1994 equal to zero. The post − pre mean coefficient is the average 1995–2005 coefficient minus the average 1985–1994 coefficient. All specifications include utility and state × year fixed effects. The sample is utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, in states with at least one other such utility. Standard errors clustered at the utility level. Sample period 1985–2005. *** p<0.01, ** p<0.05, * p<0.1.

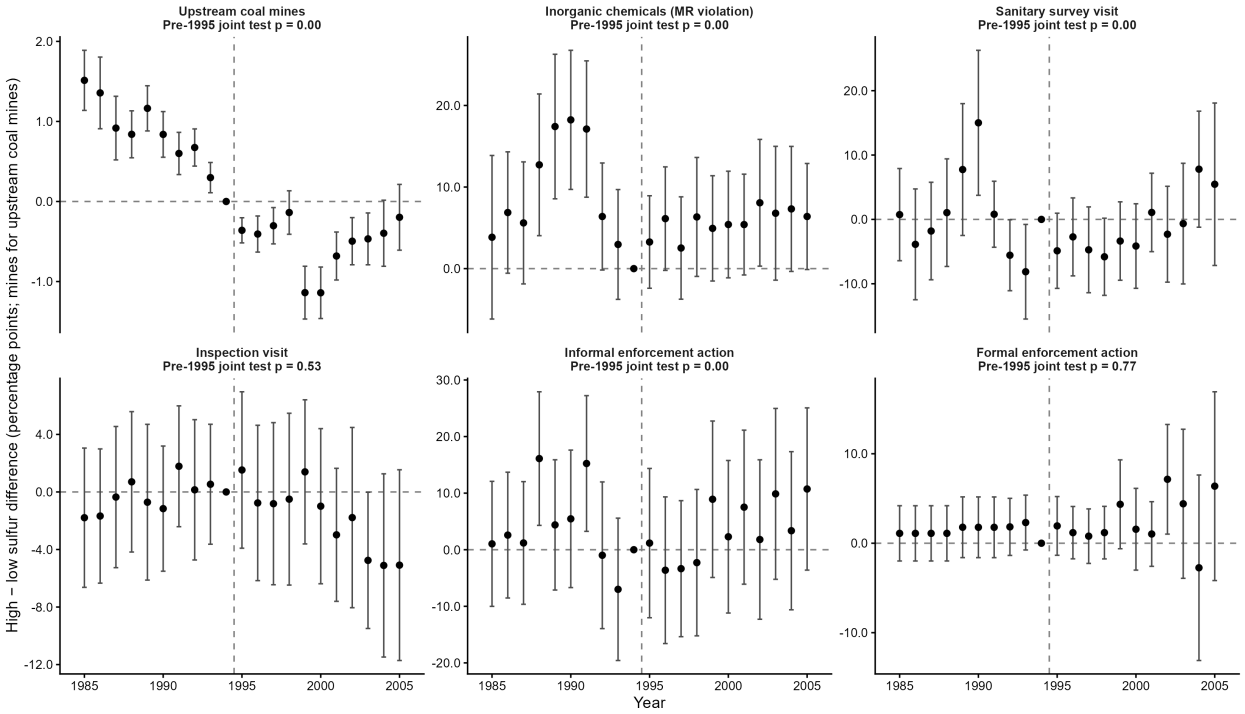


Figure 16: Event study of the high-minus-low sulfur difference in upstream coal mines, inorganic chemical monitoring and reporting violations, regulator visits, and enforcement actions

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. High-sulfur utilities are those whose average upstream coal sulfur content is at least 1.5 percent; the rest are low sulfur. Each panel plots the coefficients on year indicators interacted with the high-sulfur indicator, with 1994 omitted, controlling for the number of intake facilities, with utility and state-by-year fixed effects. Outcomes equal 100 if the violation, visit, or enforcement action occurred during the year, so coefficients are in percentage points; the first panel is in mines. The dashed vertical line separates 1994 from the post-1995 period. The p-value in each panel title is from a joint test that the 1985–1993 coefficients are zero. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

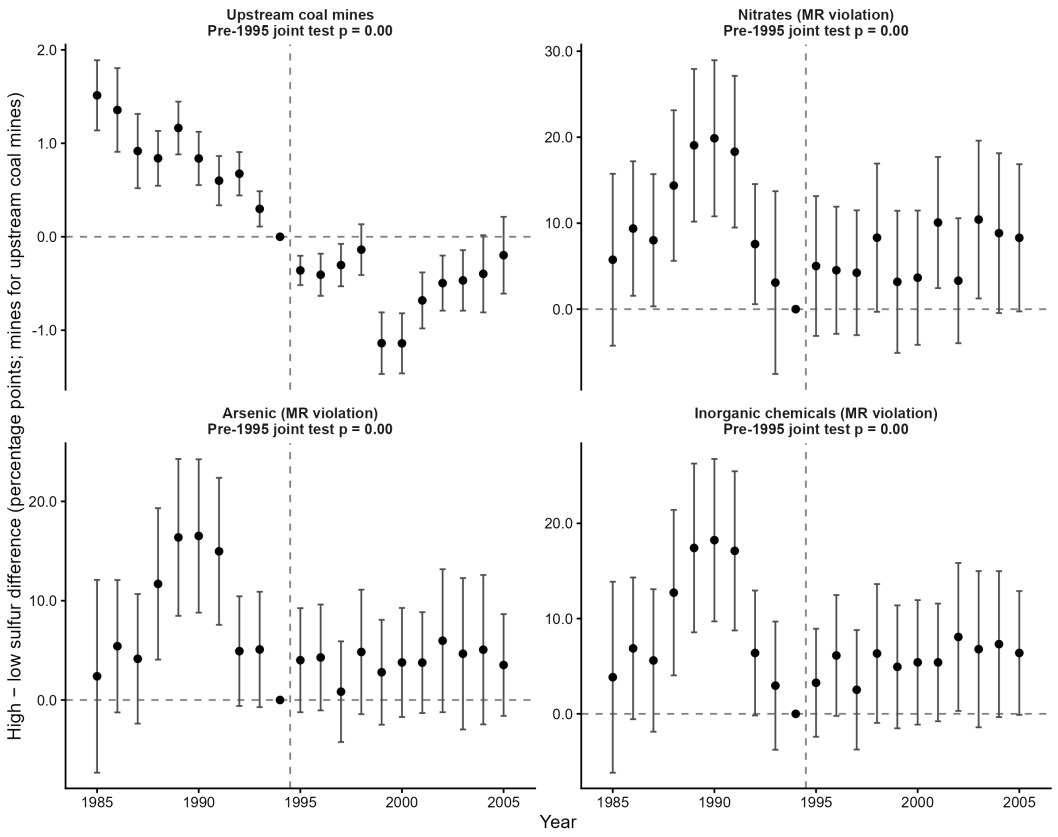


Figure 17: Event study of the high-minus-low sulfur difference in upstream coal mines and monitoring and reporting violations, by contaminant

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. High-sulfur utilities are those whose average upstream coal sulfur content is at least 1.5 percent; the rest are low sulfur. Coefficients are on year indicators interacted with the high-sulfur indicator, with 1994 omitted, controlling for the number of intake facilities, with utility and state-by-year fixed effects. Violation outcomes equal 100 if the utility had a violation of that type during the year, so coefficients are in percentage points; the first panel is in mines. The p-value in each panel title is from a joint test that the 1985–1993 coefficients are zero. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

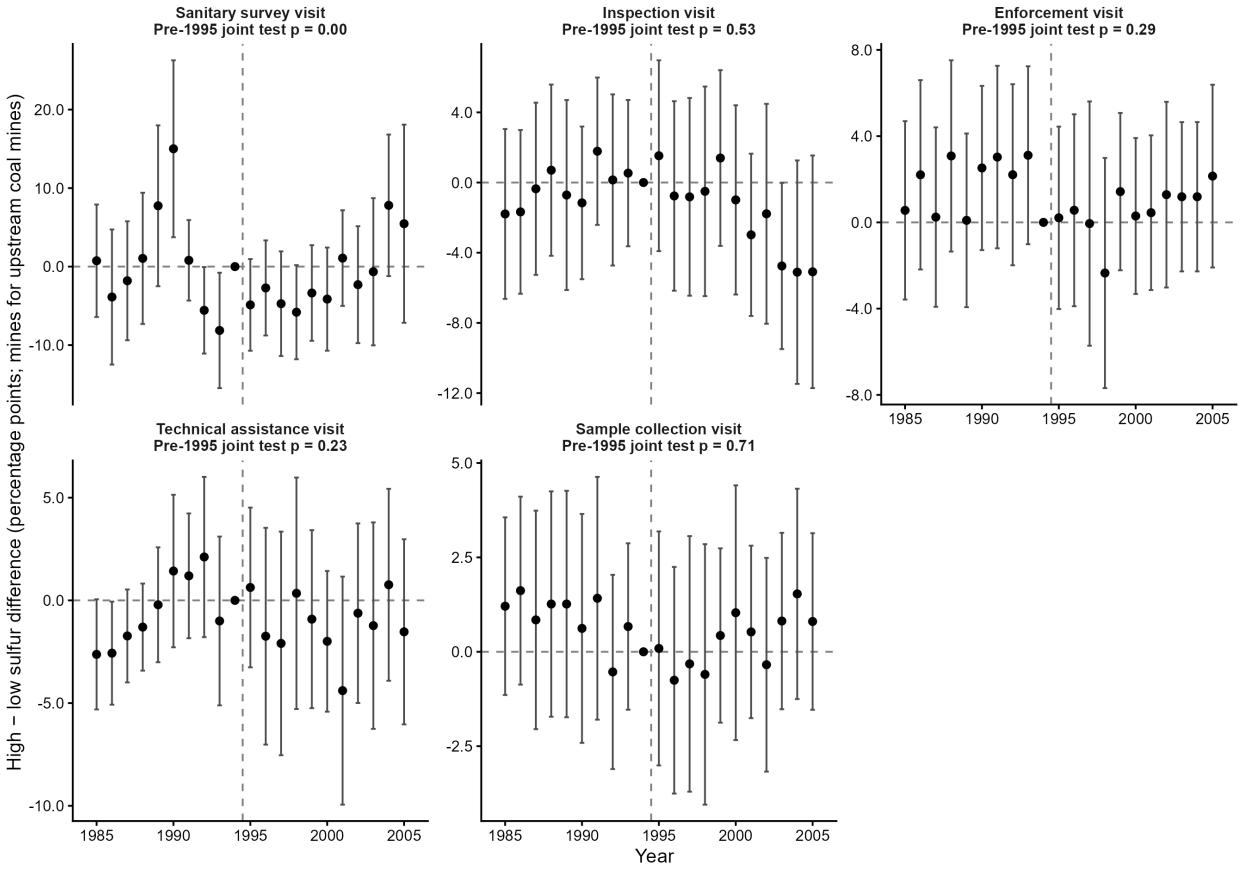


Figure 18: Event study of the high-minus-low sulfur difference in regulator visits, by visit type

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. High-sulfur utilities are those whose average upstream coal sulfur content is at least 1.5 percent; the rest are low sulfur. Coefficients are on year indicators interacted with the high-sulfur indicator, with 1994 omitted, controlling for the number of intake facilities, with utility and state-by-year fixed effects. Outcomes equal 100 if the utility had a visit of that type during the year, so coefficients are in percentage points. The p-value in each panel title is from a joint test that the 1985–1993 coefficients are zero. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

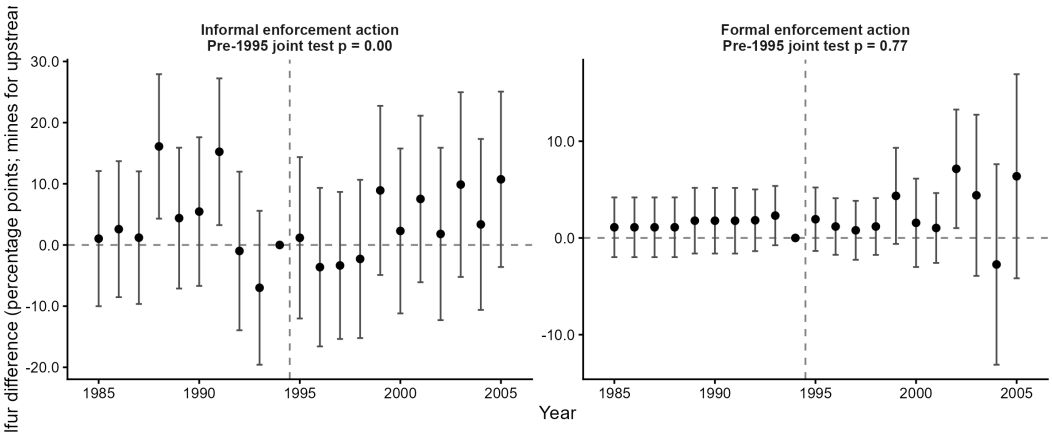


Figure 19: Event study of the high-minus-low sulfur difference in enforcement actions, by action type

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. High-sulfur utilities are those whose average upstream coal sulfur content is at least 1.5 percent; the rest are low sulfur. Coefficients are on year indicators interacted with the high-sulfur indicator, with 1994 omitted, controlling for the number of intake facilities, with utility and state-by-year fixed effects. Outcomes equal 100 if the utility had an enforcement action of that type during the year, so coefficients are in percentage points. The p-value in each panel title is from a joint test that the 1985–1993 coefficients are zero. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

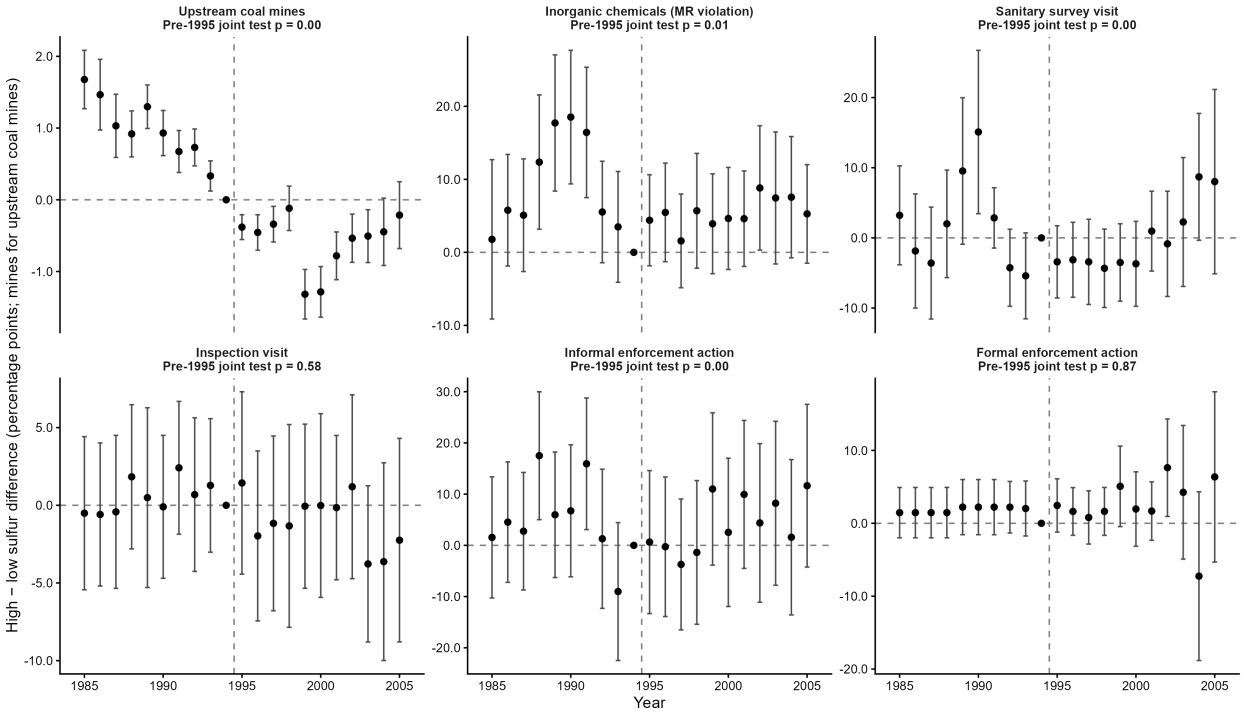


Figure 20: Event study of the high-minus-low sulfur difference, excluding utilities with no measured upstream sulfur

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005, excluding utilities with no coal sulfur measurement within the buffer around upstream watersheds. High-sulfur utilities are those whose average upstream coal sulfur content is at least 1.5 percent; the rest are low sulfur. Coefficients are on year indicators interacted with the high-sulfur indicator, with 1994 omitted, controlling for the number of intake facilities, with utility and state-by-year fixed effects. Outcomes equal 100 if the violation, visit, or enforcement action occurred during the year, so coefficients are in percentage points; the first panel is in mines. The p-value in each panel title is from a joint test that the 1985–1993 coefficients are zero. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

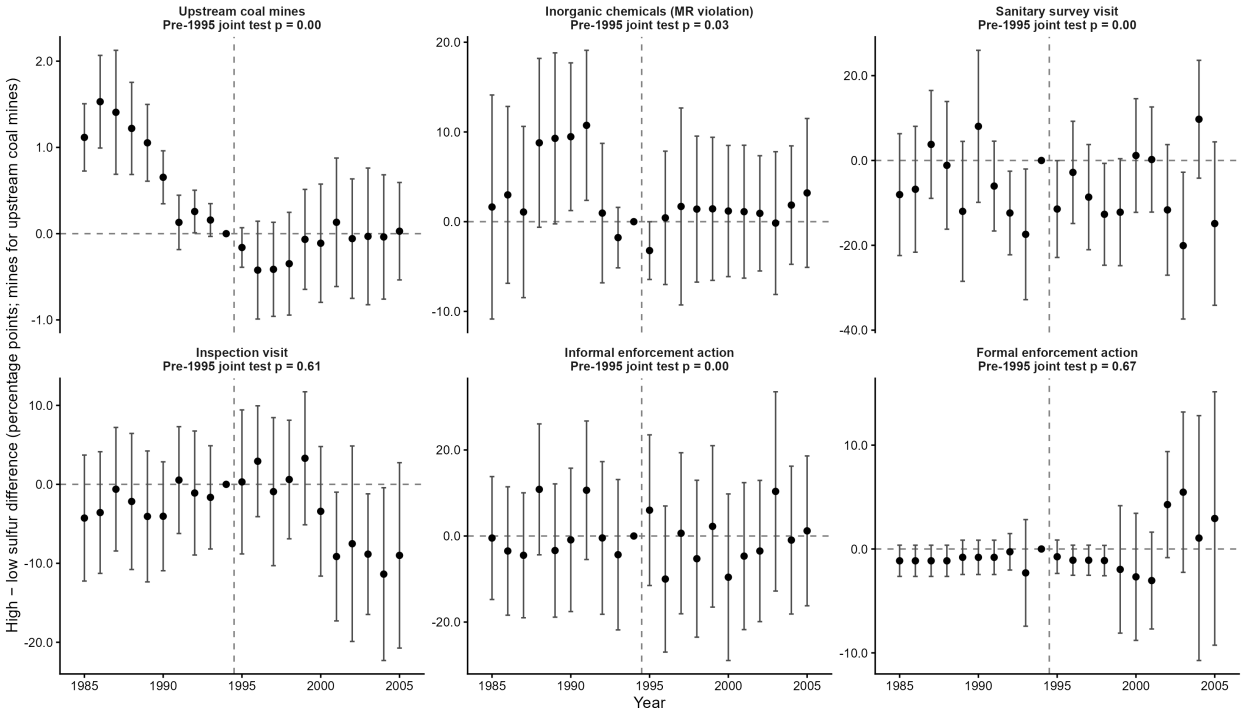


Figure 21: Event study of the difference between the top and bottom terciles of upstream sulfur

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005, excluding utilities in the middle tercile of upstream coal sulfur content. High-sulfur utilities are those in the top tercile of average upstream coal sulfur content and low-sulfur utilities are those in the bottom tercile. Coefficients are on year indicators interacted with the high-sulfur indicator, with 1994 omitted, controlling for the number of intake facilities, with utility and state-by-year fixed effects. Outcomes equal 100 if the violation, visit, or enforcement action occurred during the year, so coefficients are in percentage points; the first panel is in mines. The p-value in each panel title is from a joint test that the 1985–1993 coefficients are zero. Bars are 95 percent confidence intervals with standard errors clustered at the utility level.

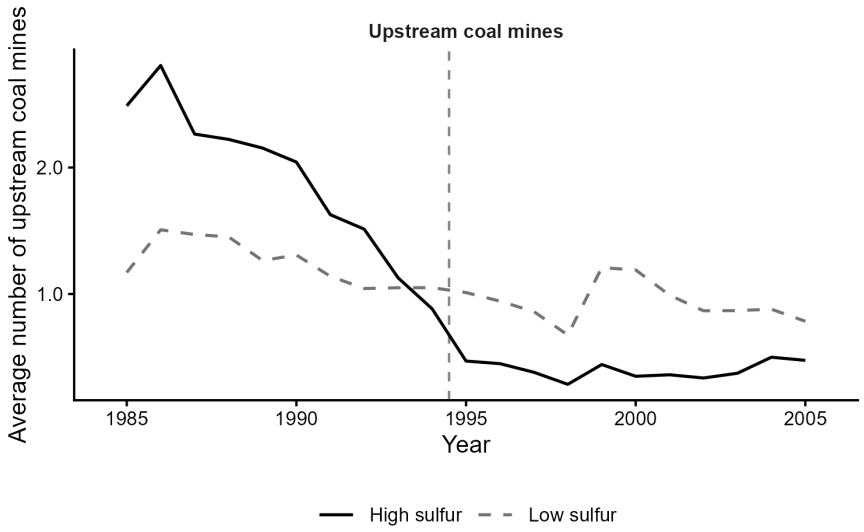


Figure 22: Average number of upstream coal mines, by upstream sulfur group

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. High-sulfur utilities are those whose average upstream coal sulfur content is at least 1.5 percent; the rest are low sulfur. Each line shows the annual mean for each group. The dashed vertical line separates 1994 from the post-1995 period.

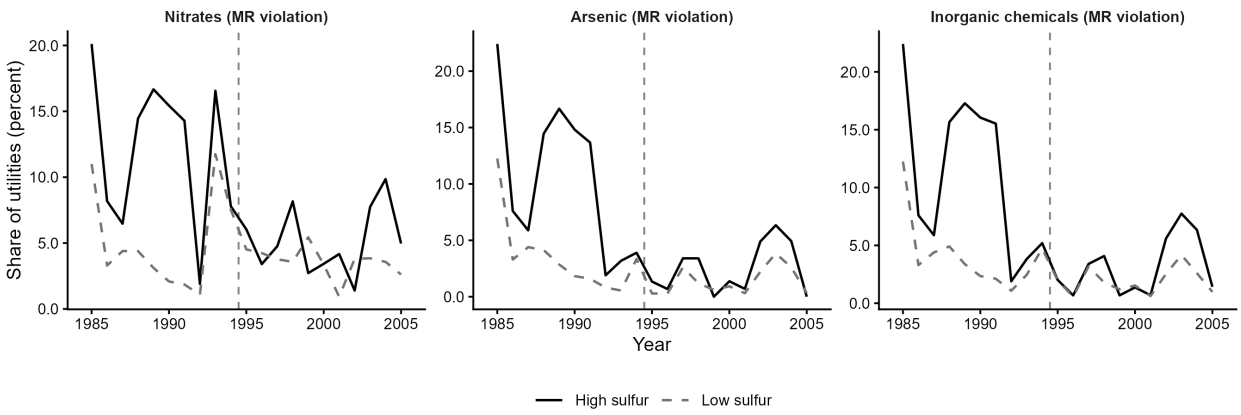


Figure 23: Share of utilities with a monitoring and reporting violation, by upstream sulfur group

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. High-sulfur utilities are those whose average upstream coal sulfur content is at least 1.5 percent; the rest are low sulfur. Each panel shows the annual percent of utilities with a violation of that type for each group. The dashed vertical line separates 1994 from the post-1995 period.

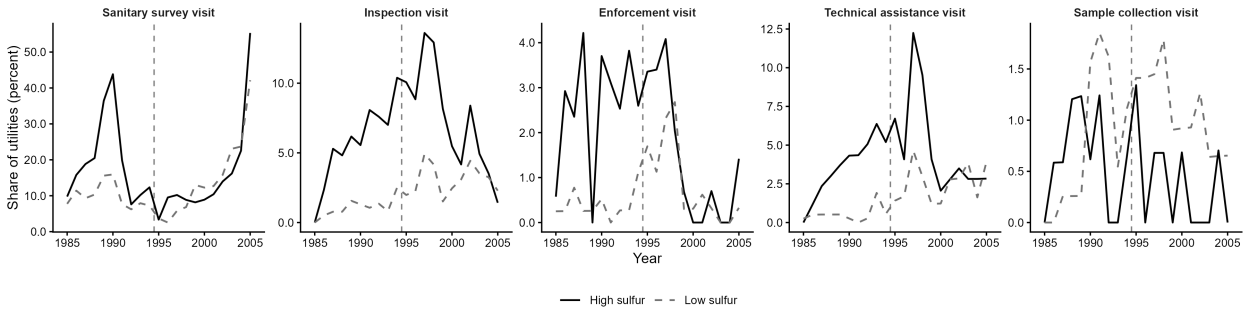


Figure 24: Share of utilities with a regulator visit, by upstream sulfur group

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. High-sulfur utilities are those whose average upstream coal sulfur content is at least 1.5 percent; the rest are low sulfur. Each panel shows the annual percent of utilities with a visit of that type for each group. The dashed vertical line separates 1994 from the post-1995 period.

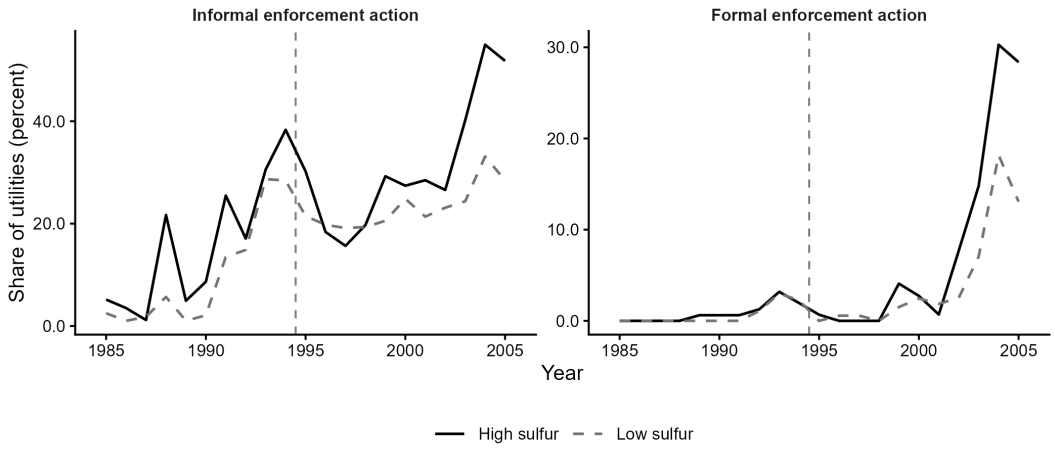


Figure 25: Share of utilities with an enforcement action, by upstream sulfur group

Notes: The sample is utilities with a coal mine within two watersheds upstream of their intake and no coal mine colocated with it, in states with at least one other such utility, 1985–2005. High-sulfur utilities are those whose average upstream coal sulfur content is at least 1.5 percent; the rest are low sulfur. Each panel shows the annual percent of utilities with an enforcement action of that type for each group. The dashed vertical line separates 1994 from the post-1995 period.

Over-identified IV: upstream and downstream sulfur instruments

Table 16: First stage: effect of the instruments on the number of upstream coal mines, 1985–2005

	Upstream coal mines (sum)		
	(1)	(2)	(3)
Post-1995 × Upstream sulfur %	-0.49***		-0.47***
	(0.07)		(0.09)
Post-1995 × Downstream sulfur %		-0.34***	-0.03
		(0.06)	(0.06)
First-stage F-statistic	49.20	37.28	24.68

Notes: The dependent variable is the number of coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. The two instruments interact an indicator for the post-1995 period with the average coal sulfur content of watersheds within two flow steps upstream and, separately, within two flow steps downstream of the utility's intake. The sample is utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, in states with at least one other such utility. The first-stage F-statistic is clustered at the utility level; in column 3 it tests both instruments jointly. Standard errors clustered at the utility level. Sample period 1985–2005. All specifications include utility and state-by-year fixed effects. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 17: Effect of upstream coal mines on inorganic chemical violations at utilities, two instruments

	Any violation					
	Nitrates		Arsenic		Inorganic chemicals	
	(1)	(2)	(3)	(4)	(5)	(6)
OLS						
Upstream coal mines (sum)	0.67**	0.54	0.60*	0.43	0.56*	0.28
	(0.33)	(0.34)	(0.31)	(0.34)	(0.31)	(0.33)
2SLS						
Upstream coal mines (sum)	5.05***	3.90**	4.89***	4.04***	4.52***	3.13*
	(1.70)	(1.74)	(1.56)	(1.56)	(1.63)	(1.66)
RF						
Post-1995 × Upstream sulfur %	-2.23**	-1.66	-1.75*	-1.29	-1.60*	-0.89
	(1.11)	(1.30)	(0.92)	(1.05)	(0.91)	(1.05)
Post-1995 × Downstream sulfur %	0.15	-0.28	-0.31	-0.75	-0.31	-0.70
	(0.89)	(0.93)	(0.74)	(0.78)	(0.72)	(0.74)
Utility fixed effects	✓	✓	✓	✓	✓	✓
Year fixed effects	✓		✓		✓	
State × year fixed effects		✓		✓		✓
First-stage F-statistic (joint)	19.95	24.68	19.95	24.68	19.95	24.68
Overidentification test p-value	0.95	0.86	0.49	0.41	0.49	0.40

Notes: Dependent variable equals 1 if the utility had a violation of that type during the year, 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. The two instruments interact an indicator for the post-1995 period with the average coal sulfur content of watersheds within two flow steps upstream and, separately, within two flow steps downstream of the utility's intake. The sample is utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, in states with at least one other such utility. Standard errors clustered at the utility level. Upstream coal mines are instrumented with two instruments. The first-stage F-statistic (clustered at the utility level) tests the two instruments jointly. The overidentification test is Hansen's J statistic, robust to clustering at the utility level, for the null hypothesis that both instruments are valid. Sample period 1985–2005. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 18: Effect of upstream coal mines on inorganic chemical violations at utilities, two instruments

	Monitoring and reporting (MR) violation					
	Nitrates		Arsenic		Inorganic chemicals	
	(1)	(2)	(3)	(4)	(5)	(6)
OLS						
Upstream coal mines (sum)	0.68**	0.55	0.62**	0.42	0.49	0.19
	(0.33)	(0.34)	(0.31)	(0.33)	(0.32)	(0.34)
2SLS						
Upstream coal mines (sum)	5.11***	3.96**	4.82***	3.82**	4.60***	3.11*
	(1.71)	(1.74)	(1.56)	(1.55)	(1.62)	(1.66)
RF						
Post-1995 × Upstream sulfur %	-2.20**	-1.63	-1.78*	-1.25	-1.47	-0.67
	(1.11)	(1.30)	(0.92)	(1.05)	(0.90)	(1.04)
Post-1995 × Downstream sulfur %	0.08	-0.34	-0.24	-0.68	-0.49	-0.92
	(0.88)	(0.93)	(0.74)	(0.77)	(0.70)	(0.73)
Utility fixed effects	✓	✓	✓	✓	✓	✓
Year fixed effects	✓		✓		✓	
State × year fixed effects		✓		✓		✓
First-stage F-statistic (joint)	19.95	24.68	19.95	24.68	19.95	24.68
Overidentification test p-value	0.89	0.81	0.56	0.45	0.33	0.24

Notes: Dependent variable equals 1 if the utility had a violation of that type during the year, 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. The two instruments interact an indicator for the post-1995 period with the average coal sulfur content of watersheds within two flow steps upstream and, separately, within two flow steps downstream of the utility's intake. The sample is utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, in states with at least one other such utility. Standard errors clustered at the utility level. Upstream coal mines are instrumented with two instruments. The first-stage F-statistic (clustered at the utility level) tests the two instruments jointly. The overidentification test is Hansen's J statistic, robust to clustering at the utility level, for the null hypothesis that both instruments are valid. Sample period 1985–2005. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 19: Effect of upstream coal mines on inorganic chemical violations at utilities, two instruments

	Maximum contaminant level (MCL) violation					
	Nitrates		Arsenic		Inorganic chemicals	
	(1)	(2)	(3)	(4)	(5)	(6)
OLS						
Upstream coal mines (sum)	-0.01	-0.00	-0.02	0.01	0.05	0.05
	(0.01)	(0.02)	(0.04)	(0.04)	(0.07)	(0.07)
2SLS						
Upstream coal mines (sum)	-0.08	-0.11	0.08*	0.22**	-0.14	-0.22
	(0.06)	(0.18)	(0.04)	(0.10)	(0.27)	(0.27)
RF						
Post-1995 × Upstream sulfur %	-0.02	0.01	0.03	-0.04	-0.10	-0.09
	(0.07)	(0.07)	(0.04)	(0.05)	(0.15)	(0.13)
Post-1995 × Downstream sulfur %	0.06	0.04	-0.07	-0.07	0.18	0.20
	(0.09)	(0.09)	(0.05)	(0.05)	(0.16)	(0.18)
Utility fixed effects	✓	✓	✓	✓	✓	✓
Year fixed effects	✓		✓		✓	
State × year fixed effects		✓		✓		✓
First-stage F-statistic (joint)	19.95	24.68	19.95	24.68	19.95	24.68
Overidentification test p-value	0.53	0.64	0.12	0.20	0.27	0.23

Notes: Dependent variable equals 1 if the utility had a violation of that type during the year, 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. The two instruments interact an indicator for the post-1995 period with the average coal sulfur content of watersheds within two flow steps upstream and, separately, within two flow steps downstream of the utility's intake. The sample is utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, in states with at least one other such utility. Standard errors clustered at the utility level. Upstream coal mines are instrumented with two instruments. The first-stage F-statistic (clustered at the utility level) tests the two instruments jointly. The overidentification test is Hansen's J statistic, robust to clustering at the utility level, for the null hypothesis that both instruments are valid. Sample period 1985–2005. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 20: Effect of instruments on utility characteristics

	Number of intake facilities	
	(1)	(2)
Upstream sulfur %		-1.18
		(2.70)
Downstream sulfur %		2.34
		(3.09)
Post-1995 × Upstream sulfur %	0.07	0.06
	(0.06)	(0.05)
Post-1995 × Downstream sulfur %	-0.02	0.00
	(0.04)	(0.04)
Utility fixed effects	✓	
Year fixed effects		✓
State × year fixed effects	✓	
Balanced panel		✓
Utilities	565	447
Observations	10,641	9,387

Notes: The dependent variable is the number of active intake facilities operated by the utility in that year. Upstream and downstream sulfur are the average coal sulfur content of watersheds within two flow steps upstream and downstream of the utility's intake. The sample is utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, in states with at least one other such utility. Standard errors clustered at the utility level. Sample period 1985–2005. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 21: Effect of upstream coal mining on regulator visit probability by visit type, two instruments

	Sanitary	Technical assistance	Enforcement	Sample collection	Inspection
	(1)	(2)	(3)	(4)	(5)
OLS					
Upstream coal mines (sum)	0.28	0.10	0.04	-0.07	0.06
	(0.29)	(0.20)	(0.11)	(0.05)	(0.13)
2SLS					
Upstream coal mines (sum)	0.82	0.66	1.09	0.50	2.09*
	(1.20)	(0.95)	(0.80)	(0.49)	(1.07)
RF					
Post-1995 × Upstream sulfur %	0.19	-0.34	-0.24	0.07	-1.55**
	(0.93)	(0.61)	(0.57)	(0.43)	(0.65)
Post-1995 × Downstream sulfur %	-0.64	0.02	-0.31	-0.34	0.55
	(0.80)	(0.51)	(0.38)	(0.34)	(0.51)
First-stage F-statistic (joint)	24.68	24.68	24.68	24.68	24.68
Overidentification test p-value	0.46	0.94	0.47	0.34	0.22

Notes: Dependent variable equals 1 if the utility received a regulator visit of that type during the year, 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. The two instruments interact an indicator for the post-1995 period with the average coal sulfur content of watersheds within two flow steps upstream and, separately, within two flow steps downstream of the utility's intake. The sample is utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, in states with at least one other such utility. Standard errors clustered at the utility level. Upstream coal mines are instrumented with two instruments. The first-stage F-statistic (clustered at the utility level) tests the two instruments jointly. The overidentification test is Hansen's J statistic, robust to clustering at the utility level, for the null hypothesis that both instruments are valid. Sample period 1985–2005. All specifications include utility and state-by-year fixed effects. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.

Table 22: Effect of upstream coal mining on enforcement actions by type, two instruments

	Enforcement					
	Informal		Formal		None	
	(1)	(2)	(3)	(4)	(5)	(6)
OLS						
Upstream coal mines (sum)	-0.15	-0.06	-1.00***	-0.12	0.33	-0.07
	(0.42)	(0.44)	(0.21)	(0.19)	(0.45)	(0.48)
2SLS						
Upstream coal mines (sum)	-2.94	-0.79	-3.36***	-1.10	2.31	-0.36
	(2.14)	(2.09)	(0.95)	(0.85)	(2.12)	(2.24)
RF						
Post-1995 × Upstream sulfur %	0.12	-0.88	1.41**	0.18	-0.42	1.00
	(1.41)	(1.53)	(0.61)	(0.57)	(1.58)	(1.68)
Post-1995 × Downstream sulfur %	1.23	1.34	-0.01	0.39	-0.61	-0.86
	(1.19)	(1.15)	(0.53)	(0.44)	(1.35)	(1.27)
Utility fixed effects	✓	✓	✓	✓	✓	✓
Year fixed effects	✓		✓		✓	
State × year fixed effects		✓		✓		✓
First-stage F-statistic (joint)	19.95	24.68	19.95	24.68	19.95	24.68
Overidentification test p-value	0.25	0.24	0.81	0.42	0.59	0.48

Notes: Dependent variable equals 1 if the utility had an enforcement action of that type during the year ("None" equals 1 if it had no enforcement action), 0 otherwise; coefficients and standard errors are multiplied by 100 to show percentage point change. Upstream coal mines is the number of active coal mines in watersheds within two flow steps upstream of the utility's intake, summed across those watersheds. The two instruments interact an indicator for the post-1995 period with the average coal sulfur content of watersheds within two flow steps upstream and, separately, within two flow steps downstream of the utility's intake. The sample is utilities with a coal mine within two flow steps upstream of their intake and no coal mine colocated with their intake, in states with at least one other such utility. Standard errors clustered at the utility level. Upstream coal mines are instrumented with two instruments. The first-stage F-statistic (clustered at the utility level) tests the two instruments jointly. The overidentification test is Hansen's J statistic, robust to clustering at the utility level, for the null hypothesis that both instruments are valid. Sample period 1985–2005. Number of observations: 10,641; number of utilities: 565. *** $p<0.01$, ** $p<0.05$, * $p<0.1$.